

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/07/2026

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Meeting ID: 161 336 0625

Passcode: 180770

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-00983

CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER

***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE/ CONT'D PER
TR FROM 7/17/26**

FILED BY: KELLY, DARCELL

TENTATIVE RULING:

Plaintiff and cross-defendant Darcell Kelly AKA Darcell Purefoy ("Plaintiff") brings the instant motion for summary judgment seeking an interlocutory judgment of partition ("Motion") in relation to her complaint for partition by sale ("Complaint") against defendant and cross-complainant Eddie Drummer ("Defendant").

For the reasons discussed below, the Court **DENIES** Plaintiff's Motion.

Legal Standard for Motion for Summary Judgment

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Background

Summary of Allegations from the Complaint

Plaintiff filed the Complaint in this matter on April 8, 2025, which asserts one cause of action for partition by sale. (Complaint, pp. 1-5.) The property in question is located at 1748 Landana Drive, in Concord, California (the “Property”). (Complaint, ¶ 7.) On April 23, 2019, a grant deed transferring the Property to “Eddie Drummer, a single man, Darcell Purefoy, an unmarried woman, and Vernelle Crittendon, a single man, all as Joint Tenants” was recorded. (*Id.* at ¶ 8.)

The Complaint alleges that Defendant has refused to voluntarily sell the Property or buy out the share of Plaintiff’s interest, thus Plaintiff is filed the instant action in order to have the Property partitioned by sale. (Complaint, ¶ 9.) Around October 2, 2022, joint tenant Vernelle Crittendon passed away leaving Plaintiff and Defendant as the remaining joint tenant owners. (*Id.* at ¶ 10.) “Before filing this action, on or about February 25, 2023, Plaintiff requested by a written demand that Defendant either (1) obtain a mortgage for the property that removes Plaintiff’s name from the loan and deed; (2) sell the property and divide the net proceeds equally; or (3) go to court and have a partition order granted by the judge for a forced dissolution of the joint tenancy. In response to this written demand, Defendant has repeatedly stated that he would not sell the property and has threatened the life of Defendant and her son in response.” (*Id.* at ¶15.) As of the date Plaintiff filed the Complaint, Defendant had not agreed to either obtain a mortgage for the Property that removes Plaintiff’s name from the loan and deed or sell the Property. (*Id.* at ¶ 16.)

Plaintiff seeks compensatory damages, pre-judgment interest, partition by sale of the Property, attorney fees and costs, an order of disbursement be made according to an allowance, accounting, contribution, and other compensatory adjustments according to principles of equity, and for other equitable relief that may include changing locks in the event of Defendant’s non-cooperation with the orderly sale of the Property. (Complaint, p. 5.)

Summary of Allegations from the Cross-Complaint

In the first amended cross-complaint (“Cross-Complaint”), Defendant asserts claims for breach of contract, fraud, unjust enrichment, and promissory estoppel. (Cross-Complaint, pp. 1-16.) The Cross-Complaint alleges that when Plaintiff and Defendant purchased the Property together it was agreed

that Defendant would be the actual owner of the Property and that Plaintiff would not be the owner but had signed the mortgage papers solely to assist Defendant as necessary to qualify for financing so that Defendant could acquire the Property. (Cross-Complaint, p. 4, attach. BC-1.) Defendant alleges that this was agreed to because Plaintiff would then benefit from showing a history of payments for credit purposes that would enhance her ability to acquire real property of her own in the future. (*Ibid.*) “It was further agreed between” Plaintiff and Defendant “that although the mortgage lender required [Plaintiff] to be on the title to the property, that as agreed the [Defendant] would be the sole and actual owner of the property. In reliance on the promise of the Cross-Defendant, [Defendant] signed the documents regarding title and loan.” (*Ibid.*) “It was further agreed between the parties that [Defendant] would occupy the said property, pay all mortgage payments on said property, pay all property taxes and insurance on said property, and be solely responsible for all maintenance on said property. In reliance therein on the promises of [Plaintiff], [Defendant] moved into the subject property, paid all of the taxes and insurance, and maintenance on the property as well as the mortgage payments. Defendant, in turn, received the benefit of having the mortgage payments made resulting in an enhanced credit score allowing her to qualify for a home.” (*Ibid.*)

Defendant asserts that Plaintiff’s filing for a partition by sale in which she claims to be entitled to 50% of the current net value of the property is a breach of the initial agreement made on or about April 23, 2019, in which she promised that Defendant would be the sole owner of the property and that her sole involvement would be to provide financial assistance to co-signing the loan papers which allowed Defendant to purchase the property. (Cross-Complaint, p. 5, attach. BC-2.) Defendant’s fraud claim is based on modified versions of the above, but with the difference that at the time the agreement/promise was made Plaintiff had no intention of actually following the promise/agreement. (Cross-Complaint, pp. 6-14.) Defendant’s promissory estoppel and unjust enrichment claims are based on the same set of facts as well. (Cross-Complaint, p. 15.)

Defendant seeks damages of no less than \$300,000 plus interest, attorney fees, and exemplary damages. (Cross-Complaint, pp. 2, 16.)

Requests for Judicial Notice

Plaintiff requests the Court take judicial notice of: (1) a copy of the Promissory Note and Deed of Trust for the Property [Exh. B to Appendix of Exhibits ISO Motion]; (2) the Grant Deed for the Property [Exh. C to Appendix of Exhibits ISO Motion]; and (3) a copy of the death certificate of Vernell Crittendon [Exh. D to Appendix of Exhibits ISO Motion].

The Court **grants** Plaintiff’s requests for judicial notice 1 to 3.

Undisputed Material Facts

The Motion relies on seven proposed undisputed material facts (“UMF”). (Separate Statement ISO Motion, pp. 1-3.) Of these, Defendant contests two of them. (Separate Statement ISO Opposition, pp. 2-3.)

UMF Nos. 2, 3, 4, 5, and 6

The UMFs that are not contested are shown below:

2. The Subject Property consists of three bedrooms and two bathrooms. The Subject Property is 1,573 square feet. The Subject Property is zoned “single family residential.”	3. At the time of the purchase of the Subject Property, Defendant was Plaintiff’s nephew.
4. Under the Grant Deed for the Subject Property title to the Subject Property vested to “Eddie Drummer, a single man, Darcell Purefoy, an unmarried woman, and Vernelle Crittendon, a single man, all as Joint Tenants.”	5. On or about October 2, 2022, Plaintiff’s father and joint tenant, Vernell Crittendon passed away.
6. Plaintiff does not reside at the Subject Property, and Plaintiff has never resided at the Subject Property. Since the purchase of the Subject Property, Defendant has remained the sole tenant-in-possession.	

UMF Nos. 1 and 7

The UMFs that are contested are UMF Nos. 1 and 7. UMF No. 1 states that “On or about April 23, 2019, Defendant, Plaintiff, and Vernell Crittendon purchased the Subject Property for \$610,000.” (Separate Statement ISO Opposition, p. 2.) As evidence, Plaintiff cites to paragraph 2 of her declaration and a copy of the Buyer’s Settlement Statement. Defendant disputes this by asserting that “Defendant disputes that the plaintiff purchased the subject property. In fact, the Plaintiff was on the title only.” (*Ibid.*) He cites to his declaration in support of the opposition and the verified cross-complaint which he states contains an admission by Plaintiff that she is not an owner of the property. (*Ibid.*)

UMF No. 7 states that “Defendant has failed to make timely mortgage payments since purchasing the Subject Property, which has negatively affected Plaintiff’s credit.” (Separate Statement ISO Opposition, p. 3.) As evidence, Plaintiff cites to paragraph 8 of her declaration and a copy of the mortgage statements for the Property. (*Ibid.*) Defendant disputes this and cites to his declaration in support of the opposition and his verified cross-complaint as evidence. (*Ibid.*)

Discussion

Summary of Arguments

Moving Papers

Here, Plaintiff asserts in the factual background section of the Motion that Defendant is her nephew and he had desired to purchase the Property but due to his poor credit, he was unable to qualify for a mortgage on his own. (Motion, p. 2.) Defendant asked Plaintiff to jointly apply for a loan so he could acquire the Property, and Plaintiff and her father ended up jointly applying for and were approved for a loan to purchase the Property. (*Ibid.*) Plaintiff's father passed away leaving only Plaintiff and Defendant as joint tenants. (*Ibid.*) Plaintiff only helped Defendant as an accommodation because Defendant could not qualify to purchase the Property on his own due to his credit history. (*Id.* at p. 3.) Defendant has failed to make timely mortgage payments and as a result, Plaintiff's credit has been negatively affected. (*Ibid.*) Plaintiff demanded that Defendant obtain a new mortgage that removes her name from the loan and deed or sell the Property and divide the net proceeds equally or go to court and have a partition order entered by a judge for forced dissolution of the joint tenancy. Defendant responded by threatening Plaintiff's life and her son's life and has refused to obtain his own mortgage that removes Plaintiff's name from the loan and deed or sell the Property. (*Ibid.*)

Plaintiff argues that she is "entitled to partition by sale of the property." (Motion, pp. 4-7.) She discusses why a partition by sale would be preferred over partition in kind. (*Id.* at pp. 5-7.) Plaintiff then argues that she is entitled to one-half of the sale proceeds due to a 50% interest in the Property based on her status as a joint tenant. (*Id.* at pp. 7-8.) After the third joint tenant on the deed passed away, the Property was held in joint tenancy between only Plaintiff and Defendant. (*Ibid.*) Next, Plaintiff argues that the Court should appoint a referee to sell the Property and provide an accounting and award her attorney fees. (*Id.* at pp. 8-9.)

Opposition

Defendant's background facts are similar to Plaintiff's, in that he asserts that he could not buy the Property due to his credit, so Plaintiff helped him qualify for the loan. (Opposition, p. 1.) He additionally contends that Plaintiff's only involvement was to assist with the credit. (*Ibid.*) Defendant further argues that there is a dispute as to the ownership interests of the Property such that Plaintiff's Motion should be denied. (*Id.* at p. 2.) He cites Witkin as citing Code of Civil Procedure section 872.720, subdivision (a), for the proposition that "in an action for partition, the court first makes an interlocutory order or decree directing partition and determining the respective interests of the parties." (*Ibid.*) He argues that it is his contention that Plaintiff has a 0% interest and that he has a 100% interest. (*Ibid.*) He then argues that the doctrine of estoppel prevents the statute of frauds from applying in this case and that promissory estoppel also applies. (*Id.* at pp. 2-4.) He finally argues that part performance is an exception to the statute of frauds, Plaintiff admitted in text messages that he was the legal owner, and that Plaintiff would be unjustly enriched if the partition were to proceed as she has requested. (*Id.* at pp. 4-5.)

Reply

Plaintiff argues that she has an absolute statutory right to partition and that Defendant's claim of sole ownership of the Property is erroneous. (Reply, pp. 3-5.) She asserts that "Defendant presents no compelling evidence to refute the presumption created by the recorded grant deed naming Plaintiff as a co-owner of the Subject Property." (Reply, p. 4.) She argues that the text messages Defendant submitted with his declaration merely demonstrate her intention to no longer have any obligation with the Property that she did not reside in. (*Ibid.*) Plaintiff argues that Defendant presents no evidence that any agreement was made that Plaintiff would have no interest in the Property and that such an agreement would violate the statute of frauds at any rate. (*Ibid.*) Plaintiff points out that the Buyer's Settlement Statement clearly shows Plaintiff provided a \$10,000 deposit for the purchase of the Property. (*Ibid.*) Finally, Plaintiff argues that she is entitled to one-half of the sale proceeds as a joint tenant. (*Id.* at p. 5.)

Plaintiff's Objections to Defendant's Evidence

Plaintiff submits nine objections to the evidence submitted by Defendant in support of his opposition. Objections 1, 2, and 3 are to specific lines of Defendant's declaration in support of his opposition. Objections 4, 5, 6, 7, 8, and 9, are to Exhibits A to F to Defendant's declaration in support of his opposition. The Court **overrules** Plaintiff's objections.

Analysis

"[A]lthough the action of partition is of statutory origin in this state, it is nonetheless an equitable proceeding" (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) "The standard of review for an interlocutory judgment of partition is abuse of discretion." (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597.)

Dispute as to the Interests in the Property

"[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition." (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) "[A]t a minimum, a viable interlocutory partition judgment must include both a determination of the parties' interests and order partition." (*Id.* at p. 141, fn. 2.) "The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (Code Civ. Proc., § 872.610.) "Section 872.610 continues the substance of the first portion of former Section 759. The section makes clear that the court may resolve any title disputes in the course of the proceeding where placed in issue by answer of a defendant or cross-defendant." (Code Civ. Proc., § 872.610 [Law Revision Commission Comment].)

Here, despite a tenant in common's absolute right to partition, this does not equate to an absolute right to partition via summary judgment. In this case, there is a dispute of material fact as to the interests of Plaintiff and Defendant in the Property. Notably, Plaintiff's separate statement in support of the Motion did not address the parties' interests in the Property, beyond being joint tenants, despite the fact that the Court is required to rule on the interests in the Property in an interlocutory judgment of partition order. (Separate Statement ISO Motion, pp. 2-3; *Summers v. Superior Court*

(2018) 24 Cal.App.5th 138, 143 ["an interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition."].)

Plaintiff's reliance on the joint tenancy alone is insufficient for the purpose of obtaining summary judgment seeking an interlocutory judgment of partition, especially in a case such as this, where Defendant contests Plaintiff's assertion of a 50% interest by asserting she has 0% interest in the Property. (Opposition, p. 2:14-18; Defendant's Decl. ISO Opposition, pp. 1:24-2:25.) The Court finds there is a dispute of fact as to Plaintiff's and Defendant's respective interests in the Property. The Court of Appeal has addressed this topic and framed it well for the purposes relevant to this instant action:

It is claimed that this is an action for the partition of property held in joint tenancy, and that a joint tenant is, *ipso facto*, an owner of an undivided one-half interest. This argument is without merit. *Cosler v. Norwood*, 97 Cal.App.2d 665 was an action for partition of real property held in joint tenancy. The judgment of the trial court ordering a three fourths-one fourth division of the proceeds, according to the relative contributions of the parties, was upheld. At page 666 the opinion states: "There is no merit in plaintiff's contention that since the title to the real property was taken in the names of the parties as joint tenants defendant is estopped to claim that she has more than one-half interest in the property. Plaintiff by seeking a partition and an accounting put in issue the interest of each of the parties to the real property in question. Therefore the deed of joint tenancy was only one item of evidence to be considered by the court in connection with other probative facts produced by plaintiff and defendant." (2) Further, in *Thomasset v. Thomasset*, 122 Cal.App.2d 116, 133, it was stated that: "Property may be found to be other than that indicated by the deed when there is an oral or written agreement as to the ownership of the property, or where such understanding may be inferred from the conduct and declarations of the spouses."

(*Kershman v. Kershman* (1961) 192 Cal.App.2d 23, 26.)

Here, Plaintiff is seeking a partition and accounting, which thus puts into issue the interest of each of the parties in relation to the real property in question. (*Ibid.*) A division of interest in property based on each party's contributions is an acceptable method to utilize to determine the parties' interests. (*Ibid*; *Cosler v. Norwood* (1950) 97 Cal.App.2d 665, 666.) Here, according to the only evidence submitted by Plaintiff on financial contributions to the purchase of the Property, she paid \$10,000 and

Defendant paid \$25,280. (Appendix of Evidence ISO Motion, Exh. A.) That does not even take into account Defendant's declaration that states he paid Plaintiff back the \$10,000 and paid an additional \$20,000 since the Property was purchased. (Defendant's Decl. ISO Opposition, pp. 1:27-2:11.)

Plaintiff's own declaration in support of the Motion states that:

At the time of the purchase of the Subject Property, Eddie Drummer was my nephew. Due to Mr. Drummer's poor credit history, he was unable to qualify for a mortgage on his own. ***Mr. Drummer requested that myself, and my father, Mr. Crittendon, jointly apply for a loan with Mr. Drummer so he could purchase the Subject Property.*** As a result, we applied for a loan to purchase the Subject Property, and we were approved for a loan.

(Plaintiff's Decl. ISO Motion, ¶ 4, emphasis added.)

This shows that Defendant tried to obtain the Property for himself initially. Only after he failed due to his poor credit did he request Plaintiff and her father to jointly apply for a loan with him "so he could purchase the Subject Property." (Plaintiff's Decl. ISO Motion, ¶ 4.) Plaintiff's own evidence could thus be interpreted to support Defendant's version of events. However, evidence is not weighed on motions for summary judgment. It is the moving party's burden to show no triable issue of material fact and that they are entitled to judgment as a matter of law. The Court here finds that there are triable issues of material facts regarding to the parties' respective interests in the Property and Plaintiff has not met her burden of showing otherwise.

As the California Supreme Court stated in an old, but still viable, opinion, "[the parties] are required to set forth fully and particularly the origin, nature, and extent of their respective interests in the property. This having been done, the interest of each, or all, may be put in issue by the others; and if so, such issues are to be first tried and determined, and no partition can be made until the respective interests of all the parties have been ascertained and settled by a trial."

(10 California Real Estate Law & Practice § 371.07, quoting *Morenhout v. Higuera* (1867) 32 Cal. 289, 295.)

Here, Plaintiff has failed to set forth fully and particularly the origin, nature, and extent of her and Defendant's respective interests in the Property and instead has sought to rely solely on the fact that Plaintiff and Defendant were joint tenants so therefore she is entitled to a 50% interest in the Property, *ipso facto*, which is a position the Court of Appeal has found to be meritless, as discussed above.

Ruling

The Court **DENIES** Plaintiff's motion for summary judgment.

Law & Motion

2. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT CONT'D FROM 6/26/26 PER TR
FILED BY: ABM GENERAL SERVICES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM General Services, Inc. ("ABM General") For the reasons set forth, the motion for summary judgment is **denied**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.) ABM General moves for summary judgment. Plaintiff opposes the motion.

Legal Standards Governing Defendant's Motion for Summary Judgment

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of

granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Note on the Pleadings

The hearing on the motion was originally scheduled for June 26, 2026. The Court issued a tentative ruling addressing various deficiencies in Plaintiff's opposition and directed Plaintiff to file an amended response to the moving party's Separate Statement of Undisputed Material Facts in conformity with the applicable California Rules of Court. Plaintiff timely filed an Amended Response to the Separate Statement and Amended Compendium of Exhibits. Defendant was given the opportunity to file a supplemental reply based on Plaintiff's amended pleadings, but ABM General did not file a supplemental reply.

Analysis

Plaintiff's complaint alleges a single cause of action for negligence based on a motor vehicle accident. The general elements of negligence are not in dispute: the essential elements are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) ABM General contends that the undisputed material facts show it owed no duty to Plaintiff, and that Plaintiff does not have, and cannot obtain, evidence to demonstrate the existence of a duty owed to Plaintiff by ABM General because defendant Whitehead who was driving the vehicle was not an employee of that company.

A. Undisputed Material Facts

ABM General supports its motion with a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") consisting of 28 UMFs. There is no genuine dispute that Plaintiff's complaint includes a single cause of action for negligence and that ABM General was added as defendant Doe 2 by doe amendment filed April 23, 2024. (UMFs 1, 3.) Plaintiff alleges that on December 16 2021, his vehicle was struck by an Enterprise box truck driven by defendant Whitehead. (UMFs 4, 5; Pl. Resp. to UMFs 4, 5 [though Plaintiff is not willing to indicate the location of the accident as undisputed in response to UMF 4].)

There is no dispute that Flowers and ABM Janitorial Services -South Central, Inc. ("ABM Janitorial") entered into a written Lease Labor Agreement dated July 28, 2013 ("Lease Agreement"), that the Lease Agreement contains the statement quoted in UMF 7 that during an employee's assignment to Flowers, that Flowers can direct and control the employee to fulfill its business needs, and that on June 14, 2020, ABM Janitorial and Flowers amended the Lease Agreement by including a new Fee/Benefit Addendum. (UMFs 6-8.) Though Plaintiff lists the UMFs as disputed at least in part, Plaintiff's responses to those UMFs do not genuinely dispute the specific facts stated. (Pl. Resp. to UMFs 6-8.) There is also no genuine dispute that ABM General assumed the duties of ABM Janitorial under the Lease Agreement in January 2017. (UMF 9; Pl. Resp. to UMF 9.)

ABM General did not own, lease, or control any of the vehicles involved in the December 16, 2021 accident. (UMFs 14, 21.) The vehicle Whitehead was driving when the accident occurred was entrusted to him by defendant Flowers, Flowers gave him permission to drive the vehicle, and Whitehead was responsible for the vehicle's maintenance. (UMFs 20, 24.) Whitehead was working for Flowers delivering bread on the date of the accident, and Flowers had provided him a handheld device "for purposes of working his route and delivering bread" for Flowers. (UMFs 23, 26.) Plaintiff

also does not dispute that Whitehead had no supervisor at ABM General supervising his work for Flowers. (UMF 28.)

B. Facts Plaintiff Asserts Are Disputed and Plaintiff's Additional Facts

Plaintiff lists as disputed, at least in part, UMFs 6-13, 15-19, 22, 25, and 27. As set forth above, the Court finds no genuine dispute as to UMFs 6-9.

The gist of Plaintiff's disputes regarding the other disputed UMFs is that Plaintiff contends ABM General is a dual employer of Whitehead, and Plaintiff disputes any implication from any of the UMFs and supporting evidence that ABM does not have that status. (Pl. Resp. to UMFs 10-13, 15-19, 22, 25, and 27.) In response to UMFs 10-13, 15-19, 22, 25, and 27, Plaintiff cites evidence regarding the employment functions ABM General retained with regard to Whitehead, including administration of his payroll and issuance of his wage statements and paychecks, maintaining his employment records, administering his employee benefits, having an on-site recruiter who collected his time records, and performing other human resources functions, including issuance of a corrective action notice when Whitehead violated work policies and procedures. (Pl. Resp. to UMFs 10-13, 15-19, 22, 35, and 27.)

Plaintiff has submitted 12 additional facts ("AFs") which he contends raise triable issues. AFs 1 and 4 and supporting evidence show ABM Industries maintained historical payroll records for Whitehead, with categories for various benefits and pay provided. (AFs 1 and 4, citing Miller Decl. Exhs. A and B; *see also* AF 11 regarding benefits.) AF 2 cites the issuance of W-2 statements for Whitehead showing his employer as ABM General Services, Inc. (not ABM Industries as stated in the AF). (AF 2, citing Miller Decl. Exh. C.) Plaintiff cites a Notice of Corrective Action issued by ABM to Whitehead after Flowers had also documented the policy violation by Whitehead. (AF 7.) Plaintiff also points to a performance review of Whitehead performed by ABM. (AF 8.) ABM's on-site recruiter collected his time cards. (AF 9.) The Punch Report summarizing Whitehead's punch card time records show he was clocked in at the date and time of the accident. (AF 10.) In AF 12, Plaintiff also points to the fee ABM billed for its leased labor reflected in the Fee/Benefits Addendum, though Plaintiff's contention regarding the "plus" percentage is not supported by the evidence cited. (AF 12, citing Miller Decl. Exh. H ["plus" percentage in the operative 2020 Fee/Benefits Addendum shows "wage plus 30.32%" not 38.32%].)

C. Summary of Applicable Law Regarding Special Employment Doctrine

The foundational principle for imposition of liability on an employer for the negligent acts or omissions of an employee is respondeat superior, which makes an employer vicariously liable for the employee's torts. (*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal. 4th 1002, 1015.) " '[T]he principal justification for the application of the doctrine of respondeat superior in any case is the fact that the employer may spread the risk through insurance and carry the cost thereof as part of the costs of doing business.' [Citations omitted.]" (*Id.* [citing in part *Hinman v. Westinghouse Electric Co.* (1970) 2 Cal.3d 956, a case cited by ABM General.] In *Bussard v. Minimed, Inc.* (2003) 105 Cal.App.4th 798, cited by ABM General, the Court elaborated on the respondeat superior doctrine: "Under the doctrine of respondeat superior, an employer is ordinarily liable for the injuries its employees cause others in the course of their work. Respondeat superior imposes liability whether or not the employer was itself negligent, and whether or not the employer had control of the employee. The doctrine's animating principle is that a business should absorb the costs its

undertakings impose on others." (*Id.* at 803 [addressing doctrine in the context of the "going and coming rule" and exceptions in the inapposite factual context of whether employee's job was a contributing cause of an accident that occurred on her commute home after she was exposed to pesticide at work, which she contended made her impaired].)

Both parties cite and rely on *Marsh v. Tilley Steel Co.* (1980) 26 Cal.3d 486, in which the California Supreme Court addressed special employment relationships. The specific circumstances in *Marsh* involved the negligence of an employee of the special employer who injured another of the special employer's workers. The Court held that in that circumstance, the injured special employee "is not barred by workers' compensation law from suing the general employer of the tortfeasor in negligence on respondeat superior principles." (*Id.* at 490.) The Court further held, "The general employer is liable in tort if, at the time of the injury, it retained total or partial concurrent control over the tortfeasor's work." In this case the evidence presented to the trial court permits the inference that the tortfeasor remained wholly or partially under the general employer's control at the time of the accident." (*Id.* [emphasis added].) (*See also Marsh, supra*, 26 Cal.3d at 492 [a special employment relationship arises if a general employer lends an employee to another "and relinquishes to a borrowing employer all right of control over the employee's activities" (emphasis added)].)

The Court also explained that the analysis regarding employer liability where an employee is loaned is not an "either or" analysis. "[W]e stress that that the jury need not find that Wynglarz remained *exclusively* defendant's employee in order to impose liability on defendant. Facts demonstrating the existence of a special employment relationship do not necessarily preclude a finding that a particular employee also remained under the partial control of the original employer. Where general and special employers share control of an employee's work, a 'dual employment' arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations omitted.]" (*Id.* at 495-496 [citing, among other decisions, *Strait v. Hale Construction Co.* (1972) 26 Cal.App.3d 941, 950].) (*See also State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal. 4th at 1008 ["Under the common law, a special employment relationship arises when a 'general' employer . . . lends an employee to another employer and relinquishes to [the] borrowing employer all right of control over the employee's activities . . . " [Citation omitted.] 'During this period of transferred control, the special employer becomes solely liable under the doctrine of respondeat superior for the employee's job-related torts. [Citations.]' [Citation omitted.] Nevertheless, not all special employment relationships are exclusive. 'Where general and special employers share control of an employee's work, a "dual employment" arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations.]' [Citation omitted.]" (Emphasis added.))

The Court in *Marsh v. Tilley Steel Co., supra*, further expounded on the special employment doctrine, stating that "evidence of the following circumstances tends to negate the existence of a special employment: The employee is (1) not paid by and cannot be discharged by the borrower, (2) a skilled worker with substantial control over operational details, (3) not engaged in the borrower's usual business, (4) employed for only a brief period of time, and (5) using tools and equipment furnished by the lending employer." (*Marsh, supra*, 26 Cal.3d at 492-493 [emphasis added].) As one court following *Marsh* explained, "In cases involving borrowed employees, the courts have applied respondeat superior principles to hold the lending employer liable for the negligence of the borrowed employee

unless the lending employer has relinquished all right of control over the borrowed employee's activity and thereby created a special employment relationship between the employee and the borrowing employer. [Citation omitted.]" (*Huffman v. City of Poway* (2000) 84 Cal. App. 4th 975, 990.)

"The question whether a special employment relationship exists is generally a question of fact reserved for the jury. [Citation omitted.] 'However, if neither the evidence nor inferences are in conflict, then the question of whether an employment relationship exists becomes a question of law which may be resolved by summary judgment.' [Citations omitted.]" (*Wedeck v. Unocal Corp.* (1997) 59 Cal. App. 4th 848, 857.)

D. Application of the Law to the Record and the Existence of A Triable Issue

Plaintiff contends the facts and evidence he submits in opposition to the motion demonstrate that ABM General did not relinquish employer control over Whitehead when he was assigned to work at Flowers and that ABM was Whitehead's dual employer under the applicable employment law, such that ABM General may be held vicariously liable for Whitehead's negligence while driving for Flowers. Among other issues, Plaintiff points to ABM General's obligations with regard to employee benefits, payroll, including issuing Whitehead's paychecks, and other human resources functions, including ABM's retained right to issue corrective action and performance reviews. (Pl. Resp. to UMFs 7, 8, 11-13, 15-19, 25, 27; Pl. AFs 1-5, 7, 8, 11.)

It is questionable whether ABM General met its initial burden on the motion. Notably absent from the moving papers is any UMF with supporting evidence that ABM General had no control over the discharge or discipline of Whitehead during his employment with Flowers to demonstrate that ABM General had relinquished all control over Whitehead while he was loaned to work for Flowers. The Lease Agreement on which ABM General relies shows that ABM General did not relinquish total control over Whitehead.

The introductory paragraph of the Lease Agreement defines ABM Janitorial as the "Supplier." The first numbered paragraph of the Lease Agreement states:

1. Leasing Relationship. Supplier is in the business of leasing employees and hereby agrees to lease its employees (hereinafter "employees" or "assigned employees") to Client Company to fill work assignments and positions as requested by Client Company. **Supplier agrees that employees assigned to perform services under this Agreement shall be employees of Supplier.**

Supplier reserves the right of direction and control over employees, including right to hire, terminate, supervise, discipline and reassign the assigned employees. The parties recognize, however, that such employees will be under Client Company's direction and control during their assignment to Client Company, and that Client Company can direct and control the employees to fulfill its business needs and to comply with any legal requirements. **Supplier further retains the right of direction and control over the adoption of employment and safety policies and management of workers' compensation claims, claim filings and related procedures.** Client Company further has the

right, at its sole discretion, to accept or cancel the assignment of any employee by notifying Supplier.

(DiDomenico Decl. Exh. B [Lease Agreement ¶ 1 [all emphasis added].])

The Lease Agreement shows on its face that ABM General, as successor-in-interest in the Lease Agreement, agreed that the employees supplied under the Lease Agreement are employees of ABM General, not the Client Company. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 1.]) There is no UMF or evidence that ABM General did not retain any authority at all over the loaned employees, such as Whitehead, including the control over the employee to impose employee discipline or other consequences for the loaned employee's misconduct up to termination of the employment, because the Lease Agreement expressly leaves such matters in the control of ABM General. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 1.]) The 2020 Amendment to the Leasing Agreement left all terms of the 2013 Lease Agreement unaltered, except for the fee/benefit schedule. (DiDomenico Decl. Exh. C.)

Further, whether or not ABM General actually performed other responsibilities with which it is charged under the Lease Agreement, other duties ABM General is explicitly given under the Lease Agreement can support an inference of a continuing employment relationship by ABM General even while the employees are loaned to the Client Company. For example, ABM's duties under the Lease Agreement include paying payroll taxes, complying with payroll reporting requirements, obtaining all required worker's compensation insurance and administration of all worker's compensation claims, providing timely and accurate wage payments, maintaining personnel files, handling unemployment claims, complying with all employee termination laws, performing random drug and alcohol testing, "familiarizing employees with the Client Company's work rules and applicable policies and procedures," and maintaining and managing employee benefit plans. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 2.a.-q.].) (*See also* DiDomenico Decl. Exh. B [Lease Agreement ¶ 4 [imposing "mutual duties" on ABM General and Flowers to comply with federal and state labor laws such as Title VII of the federal Civil Rights Act and the Family Medical Leave Act].])

Further, ABM General's evidence as to UMF 16 is in conflict. DiDomenico declares that ABM General "received no financial or other benefit from Defendant Whitehead's employment for Defendant Flowers." (UMF 16 [citing DiDomenico Decl. ¶ 8].) This statement is contradicted by the Lease Agreement itself and the Fee/Benefit Addendum, as amended. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 6 ["Client Company shall pay Supplier the fees described in the attached Fee/Benefits Addendum." (Emphasis added.).]) The operative 2020 Fee/Benefits Addendum provides: "Fee Addendum for Leased Labor Positions" and lists different billing rates such as "wage plus 30.32%," and additional fees for "CA Overtime Billing Rate with a "1.4 multiplier" and "CA Double-Time Billing Rate" with a "1.8 multiplier." (DiDomenico Decl. Exh. C [emphasis added].) (*See also* Pl. AF 12.) ABM General has thus submitted contradictory evidence in support of its motion that raises a disputed fact.

ABM General did not meet its initial burden of demonstrating as a matter of law that ABM General turned over all control over Whitehead to Flowers and that ABM General had no control at all over Whitehead such that ABM General has no liability for Whitehead's alleged negligence while driving the vehicle as a matter of law. Even if it met its initial burden, the content of the Lease Agreement with the addendum at a minimum raises triable issues of fact regarding ABM General's role as a

general employer and the possibility that it was in a dual employment relationship with Flowers with respect to Whitehead when the accident occurred because it did not turn over "total" control over Whitehead's employment to Flowers. (*Marsh, supra*, 26 Cal.3d at 495-496.)

Plaintiff has also presented evidence that raises triable issues of fact regarding a possible dual employment. Among other evidence, Plaintiff's responses to UMFs include evidence of historical payroll summaries of "ABM Industries" for Whitehead as an employee (Miller Decl. Exhs. A, B), W-2 statements for Whitehead showing his employer as "ABM General Services, Inc." (Miller Decl. Exh. C), and a Notice of Corrective Action and a Performance Review for Whitehead, both bearing ABM's name, supported by evidence from the DiDomenico Deposition that both the Flowers supervisor on behalf of Flowers and the ABM on-site recruiter for ABM General separately addressed the violations of policy and corrective action with Whitehead (Miller Decl. Exhs. F, G, and I [DiDomenico DT 57:15-60:4]), and the fact that the ABM on-site recruiter collected Whitehead's time cards (Miller Decl. Exh. I [DiDomenico DT 49:10-23]). (*See also* Pl. AFs 1-3, 7-11.)

On the record before the Court, ABM has not shown that there are no material issues of fact in dispute and that ABM General is entitled to summary judgment in its favor as a matter of law.

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

Moving Party ABM General did not meet its initial burden on the motion for summary judgment by failing to submit facts and evidence demonstrating that it relinquished total control over Whitehead to Flowers while Whitehead was assigned to Flowers. Even if ABM General met its initial burden, Plaintiff has raised triable issues regarding whether Whitehead was a special employee of Flowers subject to the total and exclusive control of Flowers during his work for Flowers, including at the time of the accident, or whether Whitehead was subject to a dual employment relationship with Flowers and ABM General. The ABM General motion for summary judgment is therefore **denied**.

3. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
CONT'D FROM 6/27/2026 PER TR
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. ("ABM Industries") For the reasons set forth, the motion for summary judgment is **granted**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries,

Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.) ABM Industries moves for summary judgment. Plaintiff opposes the motion.

Legal Standards Governing Defendant's Motion for Summary Judgment

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Note on the Pleadings

The hearing on the motion was originally scheduled for June 26, 2026. The Court issued a tentative ruling addressing various deficiencies in Plaintiff's opposition and directed Plaintiff to file an amended response to the moving party's Separate Statement of Undisputed Material Facts in conformity with the applicable California Rules of Court. Plaintiff timely filed an Amended Response to the Separate Statement and Amended Compendium of Exhibits, and consistent with that order, ABM Industries filed a supplemental reply which the Court will address below.

Analysis

Plaintiff's complaint alleges a single cause of action for negligence based on a motor vehicle accident. The general elements of negligence are not in dispute: the essential elements are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) ABM Industries contends that the undisputed material facts show it owed no duty to Plaintiff, and that Plaintiff does not have, and cannot obtain, evidence to demonstrate the existence of a duty owed to Plaintiff by ABM Industries because defendant Whitehead who was driving the vehicle was not an employee of

the company.

A. Undisputed Material Facts

In support of its motion, Defendant ABM Industries filed a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") with 15 UMFs. Plaintiff filed an Amended Response to the SS which also includes Plaintiff's Additional Material Facts ("AFs") numbered 1 through 8.

There is no dispute regarding UMFs 1-5. (Pl. Resp. to UMFs 1-5.) In its supplemental reply, ABM Industries objects to Plaintiff's amended response to UMFs 4 and 5 as not in conformity with the California Rules of Court and the Court's June 26, 2026 order, as the responses only generally cite to an Antioch Police Report without reference to its location in Plaintiff's exhibits. Even if noncompliant, the defect is immaterial as the UMFs are undisputed. Because Plaintiff states that UMFs 4 and 5 are undisputed, the Court has no need to consider the evidence cited by Plaintiff, only the facts stated in the UMFs.

There is no genuine dispute that Plaintiff's complaint includes a single cause of action for negligence and that ABM Industries was added as defendant Doe 1 by doe amendment filed April 23, 2024. (UMFs 1, 2.) There is no dispute that Plaintiff was allegedly involved in a motor vehicle accident on December 16 2021 when his vehicle was struck by an Enterprise box truck driven by defendant Whitehead. (UMFs 4, 5; Pl. Resp. to UMFs 4, 5.) There is no dispute that ABM Industries did not own, control, lease, or operate any vehicle involved in the December 16, 2021 accident. (UMFs 9, 11; Pl. Resp. to UMFs 9, 11.)

There is also no genuine dispute that Flowers had entrusted the vehicle Whitehead was driving to Whitehead, that Flowers gave Whitehead permission to drive the box truck, that Whitehead was not involved in the rental of the vehicle, and that Whitehead was responsible for maintenance of the truck. (UMFs 10, 14; Pl. Resp. to UMFs 10, 14.) It is also undisputed that at the time of the accident, Whitehead was working for Flowers delivering bread, though Plaintiff disputes that this undisputed fact precludes legal liability by ABM Industries under the dual employment doctrine. (UMF 13; Pl. Resp. to UMF 13.) There is no dispute that while Whitehead was working for Flowers, Flowers provided him with a handheld device to use in performing his bread delivery route, but again Plaintiff contends this undisputed fact does not preclude simultaneous employment of Whitehead also by ABM Industries. (UMF 15; Pl. Resp. to UMF 15.)

B. Facts Plaintiff Asserts Are Disputed and Plaintiff's Additional Facts

Plaintiff disputes UMFs 6-8, and 12. The evidence Plaintiff relies on to dispute these facts is largely the same for each of the four UMFs.

Plaintiff disputes that Whitehead was never an employee of ABM Industries or acting within the course and scope of his employment by ABM Industries when the accident occurred. (UMF 6; Pl. Resp. to UMF 6 [citing historical payroll records for Whitehead with "ABM Industries" identified in the header, W-2s which identify ABM General, not ABM Industries, as Whitehead's employer, a job posting which includes at the end a statement "WOTC Package created for ABM Industries, Inc.," and excerpts of the ABM PMK deposition of DiDomenico, discussed further below, as its evidence Whitehead was an employee of ABM Industries or was acting in the course of his employment for ABM Industries when the accident happened].) Plaintiff asserts based on this evidence that ABM

Industries "withheld and remitted" payroll taxes for Whitehead and allegedly "collected WOTC [Work Opportunity Tax Credit] tax credits for his placement." (Pl. Resp. to UMF 6.) He contends DiDomenico's deposition testimony contradicts the facts stated in UMF 6.

Plaintiff lists UMF 7 as disputed, but Plaintiff's response and the supporting evidence do not dispute the narrow fact stated. The fact stated in UMF 7 is that ABM Industries did not enter into any agreement with Flowers for the loan of employees to deliver the Flowers bread and baked goods. (UMF 7; Pl. Resp. to UMF 7.) That ABM Industries may have had shared payroll services with ABM General or that a WOTC package was created for ABM Industries related to Whitehead's position does not negate the fact stated. (Pl. Resp. to UMF 7.)

Similarly, Plaintiff lists UMF 8 as disputed, but Plaintiff's response and the supporting evidence do not dispute the narrow fact stated, specifically that ABM Industries was not a party to the 2013 Lease Agreement between Flowers and ABM Janitorial. That ABM Industries "independently assumed functions of an employer with respect to Whitehead" by processing payroll for ABM General or that ABM Industries performs shared payroll services for ABM General does not mean it was a party to the 2013 Lease Agreement. (Pl. Resp. to UMF 8.)

Plaintiff cites 8 AFs which he contends raise triable issues. AFs 1 and 2 address that ABM Industries maintained the historical employee payroll register for Whitehead's employment, that ABM Industries operates the payroll system that paid Whitehead's wages, and is the "shared services department" of the ABM companies. (AFs 1, 2.) The cited portions of the deposition transcript of the ABM PMK do not support the proposition stated in AF 3 that ABM's PMK "confirmed" that ABM General was Plaintiff's employer in 2021 and 2022 for federal tax purposes or that ABM Industries' payroll department withheld taxes and other withholdings for Whitehead or prepared his W-2s. Nevertheless, liberally construing Plaintiff's evidence, the cited evidence does support that ABM Industries provided a "shared services" department that provided payroll services to ABM General. (AF 3 [citing Miller Decl. Exh. I, DiDomenico DT 15:5-16:11].) The W-2s (Miller Decl. Exh. C) only show ABM General as Whitehead's employer, without any reference to ABM Industries.

Plaintiff does not genuinely dispute the portion of UMF 12 stating that Plaintiff does not have evidence that ABM Industries caused the December 16, 2021 accident, but Plaintiff disputes the second part of the UMF regarding whether Plaintiff has evidence that ABM Industries is "responsible" for Plaintiff's injuries from the accident. (Pl. Resp. to UMF 12.) Plaintiff contends ABM Industries' role in operating the payroll system by which Whitehead's payroll taxes were withheld and paid, and in allegedly "obtaining" WOTC tax credits for Whitehead's placement show that ABM Industries is legally responsible for the accident that caused Plaintiff's injuries under respondeat superior as Whitehead's employer. (Pl. Resp. to UMF 12.)

Plaintiff presents evidence that the job posting for Whitehead's position as a driver with Flowers includes at the end a statement "WOTC Package created for ABM Industries, Inc." (AF 4 [Miller Decl. Exh. D].) The ABM PMK deposition testimony submitted by Plaintiff, however, includes DiDomenico's testimony explaining that ABM Industries provided payroll processing "shared services" for ABM General. The fact that a WOTC package was "created for ABM Industries" is consistent with its role in managing payroll services for ABM General, and the W-2s which show ABM General as Whitehead's employer undermine the implication Plaintiff attempts to draw that ABM Industries was Whitehead's

employer and that ABM Industries, rather than ABM General obtained and used any WOTC tax credits associated with Whitehead's position.

The ABM PMK deposition transcript excerpt provided does not support that ABM Industries collected or used any WOTC tax credit associated with Whitehead's position. At the bottom of page 17 of the transcript, counsel poses the question: "Does ABM Industries, Inc. receive federal WOTC tax credits for employees placed at client sites like Flower Foods?" but the answer to the question is omitted, an answer that presumably appears on page 18 which is not included in the evidence package. The included excerpts of the transcript support that the job posting was for Whitehead's job, but not the entity that actually used or benefited from the tax credit.

Plaintiff presents evidence that ABM's PMK described ABM Industries as the "corporate entity" and ABM General as a "division," the "division" of ABM Industries that DiDomenico works for. (AF 5 [citing Miller Decl. Exh. I, DiDomenico DT 11:25-14:25].) DiDomenico also testified that he does not know whether the "folks" he reports to are employed by ABM General or ABM Industries. (Miller Decl. Exh. I [DiDomenico DT 12:12-20].) DiDomenico could not state whether ABM Industries and ABM General share common officers, directors, or managing agents (Miller Decl. Exh. I [DiDomenico DT 13:25-14:6]), but he testified that ABM Industries provides "corporate support," such that ABM Industries and ABM General share resources such as the human resources, payroll, and risk departments and might share some administrative infrastructure. (Miller Decl. Exh. I [DiDomenico DT 14:16-25].) The Court notes that most of the cited excerpts referenced in support of AF 5 are not highlighted despite the Court's June 26, 2026 Order, but the Court has considered them. (Cal. R. Ct. Rule (Cal. R. Ct., Rule 3.1116(c).) Though DiDomenico testified he was employed by ABM General, he was designed as the PMK for both ABM General and ABM Industries. (AF 6.)

The "punch report" time record report attached as Exhibit E to the Miller Declaration shows Whitehead was clocked in for work at the time of the accident. (*See also* Miller Decl. Exh. J [police report listing times of incident and police response].) There does not seem to be any dispute that Whitehead was working for Flowers delivering bread when the accident occurred. (UMFs 4, 5, 13.)

In AF 8, Plaintiff asserts that ABM Industries' payroll records reflect employer contributions for various "employer side" tax obligations during Whitehead's employment, citing historical payroll registers which bear the title "ABM Industries" and refer to "Employees Sorted by Alpha Name" (Miller Decl. Exhs. A, B) and Plaintiff's W-2s which identify ABM General as Whitehead's employer (Miller Decl. Exh. C). Plaintiff's AFs are in part also supported by ABM's PMK deposition discussed above, in which DiDomenico testified that ABM Industries provided some shared administrative services to ABM General, apparently meaning internal administrative services such as operating the payroll system for ABM General.

C. Summary of Applicable Law Regarding Special Employment Doctrine

The foundational principle for imposition of liability on an employer for the negligent acts or omissions of an employee is respondeat superior, which makes an employer vicariously liable for the employee's torts. (*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal. 4th 1002, 1015.) " '[T]he principal justification for the application of the doctrine of respondeat superior in any case is the fact that the employer may spread the risk through insurance and carry the cost thereof as part of the costs of doing business.' [Citations omitted.]" (*Id.* [citing in part *Hinman v.*

Westinghouse Electric Co. (1970) 2 Cal.3d 956, a case cited by ABM Industries.) In *Bussard v. Minimed, Inc.* (2003) 105 Cal.App.4th 798, cited by ABM Industries, the Court elaborated on the respondeat superior doctrine: "Under the doctrine of respondeat superior, an employer is ordinarily liable for the injuries its employees cause others in the course of their work. Respondeat superior imposes liability whether or not the employer was itself negligent, and whether or not the employer had control of the employee. The doctrine's animating principle is that a business should absorb the costs its undertakings impose on others." (*Id.* at 803 [addressing doctrine in the context of the "going and coming rule" and exceptions in a fairly inapposite factual context of whether employee's job was a contributing cause of an accident that occurred on her commute home after she was exposed to pesticide at work which she contended made her impaired].)

Both parties cite and rely on the case *Marsh v. Tilley Steel Co.* (1980) 26 Cal.3d 486, in which the California Supreme Court addressed special employment relationships. The specific circumstances in *Marsh* involved the negligence of an employee of the special employer who injured another of the special employer's workers. The Court held that in that circumstance, the injured special employee "is not barred by workers' compensation law from suing the general employer of the tortfeasor in negligence on respondeat superior principles." (*Id.* at 490.) The Court further held, "The general employer is liable in tort if, at the time of the injury, it retained total or partial concurrent control over the tortfeasor's work." In this case the evidence presented to the trial court permits the inference that the tortfeasor remained wholly or partially under the general employer's control at the time of the accident." (*Id.* [emphasis added].) (*See also Marsh, supra*, 26 Cal.3d at 492 [a special employment relationship arises if a general employer lends an employee to another "and relinquishes to a borrowing employer all right of control over the employee's activities" (emphasis added)].)

The Court also explained that the analysis regarding employer liability where an employee is loaned is not an "either or" analysis. "[W]e stress that that the jury need not find that Wynglarz remained *exclusively* defendant's employee in order to impose liability on defendant. Facts demonstrating the existence of a special employment relationship do not necessarily preclude a finding that a particular employee also remained under the partial control of the original employer. Where general and special employers share control of an employee's work, a 'dual employment' arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations omitted.]" (*Id.* at 495-496 [citing, among other decisions, *Strait v. Hale Construction Co.* (1972) 26 Cal.App.3d 941, 950].) (*See also State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal. 4th at 1008 ["Under the common law, a special employment relationship arises when a 'general' employer . . . lends an employee to another employer and relinquishes to [the] borrowing employer all right of control over the employee's activities . . . " [Citation omitted.] 'During this period of transferred control, the special employer becomes solely liable under the doctrine of respondeat superior for the employee's job-related torts. [Citations.]' [Citation omitted.] Nevertheless, not all special employment relationships are exclusive. 'Where general and special employers share control of an employee's work, a "dual employment" arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations.]' [Citation omitted.]" (Emphasis added.))

ABM Industries contends that it is not a party to the 2013 Lease Agreement with Flowers pursuant to which ABM General, as successor in interest to ABM Janitorial, leased or loaned employees to

Flowers. ABM Industries contends it has never been Whitehead's employer, such that it cannot be held liable for any negligence of Whitehead under the respondeat superior doctrine.

D. Application to the Facts and Existence of A Triable Issue Precluding Summary Judgment for This Defendant

The Court finds that ABM Industries met its initial burden by presenting evidence that (1) it was not a party to the 2013 Lease Agreement pursuant to which Whitehead was assigned to Flowers' business as a driver such that it is not bound as a contracting party to the terms of that agreement, (2) ABM Industries did not own or control the vehicles involved in the accident, (3) Flowers provided the handheld device and the permitted Whitehead's use of the vehicle for his bread delivery route, and (4) ABM Industries was not Whitehead's employer, based on the DiDomenico Declaration and certain responses to written discovery by defendant Flowers.

1. Plaintiff Has Not Raised A Triable Issue of Fact that ABM Industries Was Whitehead's Employer

The only evidence submitted by Plaintiff which meaningfully attempts to address an "employer" status by ABM Industries with respect Whitehead is (1) the historical payroll records for Whitehead listing ABM Industries in the header and sorting "employees" by name, including Whitehead; however, the deposition testimony of the ABM PMK offered by Plaintiff explains the significance of the historical payroll records' reference to ABM Industries, because DiDomenico testified ABM Industries provided payroll services for ABM General as part of shared services apparently provided by ABM Industries to its related entities; and (2) the WOTC program stated to be "created for ABM Industries" in the job posting for Whitehead's job. (Miller Decl. Exhs. A, B, and D.)

Plaintiff cites 26 U.S.C. section 51 which describes the amount of the tax credit available to an "employer" based on the "wages paid or incurred by the employer." (26 U.S.C. § 51(b)(1).) However, Plaintiff failed to include in the deposition excerpts the ABM PMK's response to the question of whether ABM Industries received WOTC tax credits for individuals placed at client sites like Flowers. (Miller Decl. Exh. I [DiDomenico DT p. 17, ll. 23-25].) That a "WOTC package was created for ABM Industries" does not mean that ABM Industries obtained and used the tax credit for itself; the W-2s for Whitehead showing ABM General as the "employer" for federal tax purposes undermines any inference that ABM Industries utilized any WOTC tax credit associated with Whitehead's employment, rather than ABM General utilizing the credit consistent with 26 U.S.C. section 51. The W-2s as well as the DiDomenico deposition testimony also undermine any implication Plaintiff tries to create from the historical payroll records that ABM Industries that was paying Whitehead's payroll taxes for itself rather than as the administrator of the payroll system by which the ABM General employer taxes may have been sent. Nothing in the historical payroll records identifies the entity that actually paid the payroll taxes (see Miller Decl. Exhs. A, B), but the DiDomenico Declaration, the W-2 offered by Plaintiff, and the Lease Agreement terms support that it was ABM General, as successor in interest in the contract to ABM Janitorial, that paid Whitehead's payroll and payroll taxes.

In its reply, ABM Industries argues that these facts if true show nothing more than the fact that ABM Industries played "an administrative role with respect to Defendant Whitehead's employment with Defendant Flowers at the time of the accident." (Reply p. 5, ll. 24-26.) The Court agrees. None of the facts presented by Plaintiff show that ABM Industries had or exercised any control over Whitehead's

employment in general or in his work for Flowers under the special employment authorities. There is no evidence before the Court that ABM Industries had any relationship or control over Whitehead's work or employment by either ABM General or Flowers. None of the facts support that the policies and purposes underlying the respondeat superior doctrine are implicated based on whatever internal administrative payroll role ABM Industries may have had with ABM General. (*See State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal.4th at 1015; *Bussard, supra*, 105 Cal.App.4th at 803.)

2. Plaintiff Has Not Pleaded A Single Enterprise Theory/Claim, and Plaintiff Has Not Raised A Triable Issue of Fact that ABM Industries Can Be Liable Based on A Single Enterprise Theory Even If He Had

Plaintiff argues that ABM Industries may be liable as Whitehead's employer under a "single integrated enterprise" theory. (Opp. pp. 6-7.) (*See also* Pl. Resp. to UMF 8.) Plaintiff's Complaint, however, does not plead liability by any defendant based on a single enterprise theory. The closest allegations in the Complaint do not allege facts stating that theory. (Compl. ¶¶ 10 ["Plaintiff is informed and believes and thereon alleges that each of the Defendants designated herein by a fictitious name is in some way negligent or responsible for the events and happenings herein referred to which proximately resulted in those injuries and damage to the Plaintiff as herein alleged."] and 11 ["Plaintiff is informed and believes, and upon such information and belief, alleges that at all times herein mentioned, Defendants, and each of them, were acting as the agents, servants, and/or employees of the other named Defendants, and were within the course and scope of their employment and with the full knowledge and consent of each of the other named Defendants. Each Defendant subsequently ratified and condoned the conduct of each remaining Defendant." (Emphasis added.)].) The pleadings define the issues for purposes of summary judgment. (*Doe, supra*, 23 Cal.App.5th at 661; *Teselle, supra*, 173 Cal.App.4th at 161.) Plaintiff does not explain how the fact that ABM Industries may have acted as a payroll processing "agent, servant, or employee" of ABM General would legally make ABM Industries an employer of Whitehead and vicariously liable for his negligence.

Further, even if a single enterprise theory had been pleaded in the Complaint, Plaintiff has not shown that if ABM Industries provided shared administrative services or shared services departments for ABM General, including payroll administration, that fact alone is sufficient legally to demonstrate the existence of a single enterprise for purposes of imposing liability on ABM Industries for acts or omissions arising out of ABM General's Lease Agreement and potential employer liability to third parties. To support his single enterprise theory, Plaintiff cites *Laird v. Capital Cities/ABC* (1998) 68 Cal. App. 4th 727, a decision addressing a single enterprise theory in the context of Title VII of the Federal Civil Rights Act, not vicarious liability for employee negligence under a respondeat superior analysis. The Court relied on federal authorities addressing the standard for a single enterprise theory of liability under Title VII.

In any event, the Court in *Laird* states, "An employee who seeks to hold a parent corporation liable for the acts or omissions of its subsidiary on the theory that the two corporate entities constitute a single employer has a heavy burden to meet under both California and federal law. Corporate entities are presumed to have separate existences, and the corporate form will be disregarded only when the ends of justice require this result. [Citations omitted.] In particular, there is a strong presumption that a parent company is not the employer of its subsidiary's employees. [Citation omitted.]" (*Id.* at 737 [emphasis added, citing among other decisions *Mesler v. Bragg Management Co.* (1985) 39 Cal. 3d

290, 300].) The four factors Plaintiff cites from the *Laird* decision constitute the federal "integrated enterprise" test developed for purposes of Title VII. (*Id.*)

The California Supreme Court in the *Mesler* case cited in *Laird*, however, set forth the two general elements necessary to allege liability based on piercing the corporate veil under an alter ego theory, which is in effect what Plaintiff seeks to do by asserting ABM Industries, a separate corporation, is part of a single enterprise with ABM General, another corporation, such that it is liable for any liability ABM General may have based on ABM General's leasing or loaning Whitehead as an employee under the ABM General Lease Agreement with Flowers. "There is no litmus test to determine when the corporate veil will be pierced; rather the result will depend on the circumstances of each particular case. There are, nevertheless, two general requirements: '(1) that there be such unity of interest and ownership that the separate personalities of the corporation and the individual no longer exist and (2) that, if the acts are treated as those of the corporation alone, an inequitable result will follow.' [Citation omitted.] And 'only a difference in wording is used in stating the same concept where the entity ought to be held liable is another corporation instead of an individual.' [Citation omitted.]" (*Mesler, supra*, 39 Cal.3d at 300 [also stating, "An employee who seeks to hold a parent corporation liable for the acts or omissions of its subsidiary on the theory that the two corporate entities constitute a single employer has a heavy burden to meet under both California and federal law. Corporate entities are presumed to have separate existences, and the corporate form will be disregarded only when the ends of justice require this].) (*See also Tran v. Farmers Group, Inc.* (2002) 104 Cal.App.4th 1202, 1218-1219 ["An interinsurance exchange is not a corporation, but we see no reason why the distinction between the exchange and its attorney-in-fact may not be disregarded in cases meeting the requirements of the 'alter ego' or 'single enterprise' doctrine authorizing disregard of the corporate entity. [Citations omitted.] . . . [¶] Two conditions are generally required for application of the doctrine to two related corporations: (1) such a unity of interest and ownership that the separate corporate personalities are merged, so that one corporation is a mere adjunct of another or the two companies form a single enterprise; and (2) an inequitable result if the acts in question are treated as those of one corporation alone. [Citations omitted.] Whether these conditions have been satisfied is a question of fact. [Citations omitted.]" (Emphasis added.)).

The fact that ABM Industries shares payroll, HR and certain administrative functions with ABM General is the only evidence Plaintiff has presented to support his single enterprise theory between ABM Industries and ABM General. Plaintiff has not cited any authority that this fact alone is enough to deem ABM Industries and ABM General a single enterprise under applicable law.

The ABM PMK specifically testified that he did not know if there were common officers, directors, or managing agents between ABM Industries and ABM General. (Miller Decl. Exh. I [DiDomenico DT 13:25-14:6].) He stated he did not know the corporate structure of ABM, so he did not know if ABM General was a subsidiary of ABM Industries. (Miller Decl. Exh. I [DiDomenico DT 13:20-24].) Plaintiff has not presented any evidence that there has been a commingling of corporate funds or a failure to abide by corporate formalities for maintaining the separateness of the two corporations. Plaintiff has also not presented any evidence that ABM General cannot respond financially and in full for whatever damages Plaintiff might prove ABM General may be liable for, if any, or that there are any other facts that would make it "inequitable" to treat the corporations as separate legal entities.

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

ABM Industries met its initial burden on the motion by presenting facts and evidence demonstrating it was not Whitehead's employer and was not a party to the 2013 Lease Agreement with Flowers by which Whitehead was assigned to work for Flowers. For the reasons detailed above, Plaintiff has not raised triable issues of material fact sufficient to show that there are triable issues as to whether ABM Industries was Whitehead's employer under the respondeat superior, dual employment, or special employment doctrines, or as a member of a single enterprise with ABM General, warranting imposition of liability on ABM Industries for any liability of ABM General for Whitehead's negligence.

The motion for summary judgment in favor of ABM Industries is **granted**.

4. 9:00 AM CASE NUMBER: C24-02472
CASE NAME: VERONICA RAMIREZ VS. ARA HOSPITALITY SERVICES, INC.
LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: RAMIREZ, VERONICA

TENTATIVE RULING:

Plaintiff's unopposed motion to file a First Amended Complaint is **granted**.
Plaintiff shall file the proposed First Amended Complaint within 10 days of August 7, 2026.

Parties are reminded the next Case Management Conference (CMC) is set for September 10, 2026 at 8:30 am in D32. Parties must file updated CMC Statements 10 days prior to the CMC.

5. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
TO CONSOLIDATE HEARINGS
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
VACATE ORDER
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

7. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
FOR RECONSIDERATION
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Theodore-Josheph Vigil's Motion for Reconsideration of the July 18, 2025, Order granting Defendant Future Ford of Concord's Motion to Compel Arbitration. This matter was continued from the March 20, 2026, hearing.

For the reasons explained below, **Plaintiff's Motion for Reconsideration is denied.** The matter remains stayed in view of the referral to arbitration.

The Court sets a Case Management Conference ("CMC") at **8:30 am on December 3, 2026, in Dept. 32.** Parties to file a CMC Statement on the status of the arbitration at least 10 days prior to the CMC.

Procedural Background

This case is about alleged predatory lending practices surrounding the purchase of a 2022 Ford Explorer ST that took place on September 19, 2024. (Complaint at pp.2-6.)

Plaintiff filed this suit against Defendant on January 8, 2025. Plaintiff then filed a First Amended Complaint ("FAC") on February 14, 2025. Defendant filed its Motion to Compel Arbitration on March 21, 2025. The Court granted that motion after hearing on July 18, 2025.

On May 1, 2025, in response to Plaintiff's written discovery and given the fact that the motion to compel arbitration had been filed and the hearing was set for after the discovery would be due, Defendant filed an ex parte application for an order staying the case pending resolution of its motion to compel arbitration which was granted with the caveat "except discovery related to motion" ie the parties were allowed to conduct narrowly tailored discovery for related to the motion to compel arbitration. (Crowell Decl. ¶ 3, Ex. B.)

Defendant's Application was granted and filed with the Court, but Defendant failed to serve the signed order on Plaintiff. According to Defendant's counsel, Plaintiff was present at the Ex-Parte hearing and Plaintiff was given the option to wait for counsel to provide a hard copy at the courthouse or to obtain the order once it was available online. (Crowell Decl. ¶¶ 10-14.)

On July 28, 2025, Plaintiff filed the instant motion for reconsideration of the July 18, 2025, order granting the Defendant's motion to compel arbitration.

On August 14, 2025, Defendant's counsel emailed Plaintiff a letter offering the opportunity to propound discovery related to the motion to compel arbitration as provided by the Ex Parte Order. (Crowell Decl. ¶ 15-16, Ex. B and H.) Plaintiff did not serve any discovery in response to Defendant's counsel August 14, 2025, letter. (Crowell Decl. ¶ 17.)

March 20, 2026, Ruling

In a hearing on March 20, 2026, the Court found that Plaintiff had not conducted discovery related to the motion to compel because Defendant failed to serve the signed May 1, 2025, order on Plaintiff. (The May 1, 2025, order had authorized Plaintiff to conduct discovery related to Defendant's Motion

to Compel Arbitration.).

As a result of the finding, the Court granted Plaintiff time to propound discovery related to the Motion to Compel Arbitration and continued the Motion for Reconsideration to August 7, 2026.

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, “based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

A trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

Plaintiff’s Electronic Signature

Plaintiff argues in his “Opposition” papers to the Motion to Compel (which the court considers as the Plaintiff’s Motion for Reconsideration) that Defendant cannot satisfy its burden of proving the existence of a valid agreement because Defendant cannot produce metadata or native electronic records associated with the alleged agreement, cannot identify device, session, or execution-related data associated with the alleged signing event, and cannot produce records establishing how the alleged electronic agreement was authenticated or attributed to Plaintiff. (Plaintiff’s Moving Papers [filed July 6, 2026] at p. 3: 11-15; Plaintiff’s Reply Papers [filed on August 3, 2026] at p. 5: 6-18.)

A proponent seeking to authenticate an electronic signature must show the electronic signature ““was the act of the person,”” which could be shown ““in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.”” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843, italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53; citing *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062.) In sum, once [the Opposing Party] produced evidence challenging the authenticity of the purported arbitration agreement, the [Moving Party] was required to rebut the challenge by establishing by a preponderance of the evidence that the agreement was valid. The [Moving Party] did not have to authenticate [the Opposing Party]’s signature on the arbitration agreement. The [Moving Party] could have met its burden in other ways, including a declaration from the [Moving Party]’s custodian of records. (*Gamboa v. Northeast Community Clinic* (2021) 72

Cal.App.5th 158, 171.)

Defendant has met its burden by proving that the electronic signature was the act of Plaintiff by establishing evidence that the Arbitration Agreement was valid. Defendant did this by authenticating the Arbitration Agreement through its Declaration of Zabilhullah "Mo" Yousofzai In Support Of Defendant's Motion To Compel Binding Arbitration Pursuant To Contract And To Stay This Case. Mr. Yousofzai declared that he had him electronically sign the contract on a tablet. (Yousofzai Decl. ¶ 7.) Mr. Yousofzai goes on to state that the electronic signed copy of the contract was included in the deal jacket. (Id.)

The Court notes that Plaintiff's position about the signing of the contract has been inconsistent. In Plaintiff's declaration attached to his moving papers, he emphatically states that at no time during the transaction did he electronically sign the Retail Installment Sales Contract using a computer, tablet, touchscreen device, kiosk, cellular telephone, or any other electronic signature platform. (Vigil Declaration at p. 2: 15-17.) On the next page of his declaration Plaintiff states that he has no recollection of executing a second contract or electronically signing documents after signing the paper contract on which he made amendments to. (Vigil Declaration at p. 3: 14-18.)

Considering the totality of the circumstances, the Yousofzai Declaration satisfies authentication of the Arbitration Agreement under *Ruiz* and Civil Code section 1633.9.

Conclusion

Plaintiff has failed to show new or different facts, circumstances, or law that would entitle him to a different decision than the one made by the court granting the motion to compel arbitration. Accordingly, **Plaintiff's Motion for Reconsideration is denied**. The matter remains stayed in view of the referral to arbitration.

The Court sets a Case Management Conference ("CMC") at **8:30 am on December 3, 2026, in Dept. 32**. Parties to file a CMC Statement on the status of the arbitration at least 10 days prior to the CMC.

8. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
FILED BY DEFENDANTS
FILED BY:

TENTATIVE RULING:

This is the first time the case has been set to be called in front of Dept. 32. The matter was previously assigned to Dept. 18 and transferred to Dept. 32 effective January 5, 2026. When the case was called on January 14, 2026 for a Case Management Conference, visiting Judge Charles Treat heard the matter and gave notice that the matter was assigned to Judge Hiramoto D32 for all purposes effective January 5, 2026.

The Court discloses that she and other family members have purchased spaces at the Defendant Sunset View Cemetery Association. Several family members have remains there. She does not recognize any of the names of people mentioned in the pleadings, and to the best of her recollection she has never had any personal interactions with any of the persons mentioned in the pleadings. Her personal dealings had been with only one employee of Defendant and she is informed and believes that that person has since retired. Judge Hiramoto has determined she is not disqualified to hear this matter.

The court on its own motion will **continue the hearing to Friday September 11, 2026 at 9:00 a.m..** The tentative ruling will be available at 1:30 pm on the prior court day, per the usual rules.

9. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
TO CONSOLIDATE
FILED BY:

TENTATIVE RULING:

Plaintiff filed a motion to consolidate this case with PS25-0558, *Bosco Credit LLC v. Tina Short and Wilton Short* on March 30, 2026. That case was an action for unlawful detainer based on the same residential property at issue in the instant case.

On July 30, 2026, Ze Wang, counsel of record for Bosco Credit LLC in the PC25-0558 docket filed a declaration stating that on July 24, 2026 judgment was entered in that case in favor of Bosco Credit and against Defendants Wilton Short and Tina Short. The court on its own motion takes judicial notice of the judgment in docket PS25-0558.

Accordingly, the Plaintiff's motion to consolidate is **denied** as moot.

10. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
TRIAL PREFERENCE / CONT'D FROM 6/26/26 PER TR
FILED BY: GREENLAW, REID

TENTATIVE RULING:

See Line 17.

11. 9:00 AM CASE NUMBER: C25-03525
CASE NAME: JOSEFINA PAPANGGO VS. 2ND CHANCE MORTGAGES, INC.
COMPLAINT
FILED BY: 2ND CHANCE MORTGAGES, INC.
TENTATIVE RULING:

Motion withdrawn as moot by the moving party.

12. 9:00 AM CASE NUMBER: MSC21-00779
CASE NAME: TEDENEKILSH ZERHIOUN VS. YOSEPH DEMISSIE
TO ENFORCE JUDGMENT AND FOR ISSUANCE OF WRIT OF POSSESSION / CONTD FROM 6/26/27
PER TR
FILED BY: DEMISSIE, YOSEPH
TENTATIVE RULING:

Defendants Hareg Teffera and Yoseph Demissie's motion to enforce the judgment is **granted in part and denied in part**.

Defendants filed a motion to enforce the judgment, which also sought an order requiring Plaintiff to move out of the property because Plaintiff stopped making monthly payments and because it would be easier to sell the property if Plaintiff moved out.

This motion was originally set for June 26, 2026. The Court issued a tentative ruling confirming various prior orders entered in this case and the Court stated that it would enter one order regarding the sale of the property that incorporated all the prior orders. The Court also requested supplemental briefing on the claimed monthly payments and the request for an order requiring Plaintiff to vacate the property. Defendants filed an unapproved reply to Plaintiff's supplemental brief and that reply is stricken. The Court has reviewed the requested supplemental briefs.

Monthly Payments

As to the monthly payments, Plaintiff has remained in possession of the property since this lawsuit was initiated. Defendants and their attorney state that Plaintiff had made monthly payments, but stopped making her monthly payments of \$1,380 in September 2023. (Webb dec. ¶16; Teffera dec. ¶¶6-7; Demissie dec. ¶17.)

Defendants argued in their initial papers that Plaintiff was ordered to make monthly payments while she remained in possession. In the first tentative ruling, the Court noted that it could not find a copy of an order where Plaintiff was required to make monthly payments. In the supplemental briefs Defendants acknowledged that there was no written order. Defendants argue that the payment history shows that Plaintiff's occupancy of the property was conditioned on monthly payments,

however, there is no court order to that effect. Therefore, the Court cannot order Plaintiff to vacate the property for failing to make payments that she was not ordered to make.

To the extent Defendants want an order requiring Plaintiff to make payments while she remains in possession, that issue is not properly noticed as part of this motion and may be re-raised in the future.

Evidence Plaintiff is interfering with the Sale

In the supplemental briefing, Defendants were told they could provide additional evidence on the need for the property to be vacant in order for it to be sold.

Defendants provided a declaration from their attorney with one photograph of the outside of the property. (Webb dec. ¶12 and ex. A.) Defendants also offer argument that it is difficult to show and sell the property while Plaintiff lives there, but there is no evidence that the property cannot be sold. Further, the evidence presented does not show that Plaintiff has improperly interfered with the prior attempts at sale.

Defendants have raised concerns about obtaining access to the property in order to list and sell it. To alleviate this concern, the Court will enter an order that allows the broker access to the property with reasonable notice to Plaintiff.

In the prior tentative ruling on this motion, the Court noted that “Plaintiff is free, however, to bid on the property when it is listed for sale on the open market.” This statement was made because Defendants had not shown that the law prevents a co-owner from being the highest bidder on the open market and purchasing a property. That being said, the Court is concerned that Plaintiff may have an incentive to interfere with the sale or otherwise make the property appear less desirable to lower the purchase price so she can bid on it for a lower price. If there is evidence that Plaintiff is engaging in such behavior the Court will consider ordering Plaintiff to vacate the property. Defendant would be required to file a motion, but may appear ex parte to have the motion heard promptly.

The Court makes the following findings:

1. Judgment was entered on September 16, 2022.
2. Plaintiff failed to complete the court-ordered buyout within the time allowed by the Judgment and subsequent post-judgment orders.
3. On September 6, 2023, this Court ordered that the Property be sold to the highest bidder and appointed Mariama Gebeyehou of Hartlove & Dudum Real Estate Group as the listing broker.
4. The Court of Appeal affirmed that Order on August 27, 2025.

5. No stay presently exists preventing enforcement of the Judgment.

6. This Court has previously entered orders authorizing the sale of the Property, appointing an Elisor to execute documents necessary to complete the sale, and directing that the net proceeds of sale be deposited with the Court pending further order.

The Court Orders:

1. The Court reaffirms the September 16, 2022, Judgment and all subsequent post-judgment orders directing that the Property located at 1231 Marionola Way, Pinole, California be sold to the highest bidder.

2. The Court reaffirms the appointment of Mariama Gebeyehou as the court-appointed listing broker and reaffirms the authority previously granted to the Court-appointed Elisor to execute all documents reasonably necessary to complete the sale.

3. Plaintiff shall fully cooperate with all reasonable efforts necessary to market and sell the Property, including permitting access Monday through Friday between the hours of 8:00 a.m. and 6:00 p.m. for inspections, appraisals, photography, staging, repairs, open houses, private showings, escrow, title, and closing. Plaintiff must also vacate the premises on one weekend day of each weekend (either Saturday or Sunday) for a 4 hour period for an Open House upon 48 hours written notice from the broker. The broker may enter the property alone or with third parties for purposes reasonably related to listing and selling the property. Unless the parties agree otherwise, the broker shall give written notice to Plaintiff as soon as practical, but at least 48 hours before the broker plans to enter the property. Notice should be given by email to tedeoriginal@gmail.com.

4. Plaintiff shall not interfere with the listing, marketing, sale, escrow, transfer, or closing of the Property.

5. The Elisor is authorized to execute any document necessary to complete the sale should Plaintiff fail or refuse to execute such document

6. All net proceeds from the sale shall be deposited with the Clerk of the Court pending further order regarding distribution.

7. Once the sale proceeds are deposited with the Court, the parties shall notify the courtroom clerk of the need for a Case Management Conference (CMC). No less than 5 court days before the conference, the parties shall file a CMC statement identifying what issues remain in the case and what procedure should be used for deciding those issues.

8. The Court retains jurisdiction to enforce this Order, supervise completion of the sale, and issue any further orders necessary to effectuate the Judgment.

13. 9:00 AM CASE NUMBER: N24-1920
CASE NAME: THE 1323 AND 1325 LOCUST STREET, LLC VS. ADB GROUP, INC.
ASSIGNMENT OF RIGHTS; RESTRAINING ORDER; AND TURNOVER ORDER
FILED BY:

TENTATIVE RULING:

The unopposed ex parte application of the Plaintiff and Judgment Creditor for Assignment of Rights; Restraining Order; and Turnover Order is granted.

The court will sign the Proposed Order lodged with the court on July 27, 2026.

14. 9:00 AM CASE NUMBER: N26-0240
CASE NAME: CHELSEA STORKAN VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES
PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS (CONT'D FROM 5/29/26 PER TR)
FILED BY: STORKAN, CHELSEA

TENTATIVE RULING:

Before the Court is Chelsea Storkan's petition for writ of mandamus challenging the order of suspension of her California Driver's License by the California Department of Motor Vehicles. For the following reasons, the writ petition is **denied**.

I. Writ Petition

On October 5, 2025, petitioner was detained by Officer Clayton Gardner of the Pleasant Hill Police Department. (Petition, ¶4.) At the time of the stop, Officer Gardner stated the reason for the stop was due to expired registration. (*Id.* at ¶5.) The report prepared by Officer Gardner stated the reason for the stop was expired registration and a missing license plate. (*Id.* at ¶6.)

The petition contends, in essence, that the officer lacks credibility given the circumstances. Petitioner alleges the missing plate was only discovered after the stop. (*Id.* at ¶¶6-8.) The petition does not challenge any aspect of petitioner's arrest following the stop, which she contends was unauthorized.

Petitioner states video footage of the stop would have "disproven" the officer's stated reasons for the stop, which included "sighting the defendant in the parking lot of Farrington's Bar," and notes that no video footage was provided pursuant to the police department's "own policy." (*Id.* at ¶¶9-11.) Petitioner points out that the officer did not make the stop until approximately one mile from the point of the initial sighting. (*Id.* at ¶12.) Petitioner states she has relevant evidence not presented at the hearing, which consists of the Pleasant Hill Police Department's policy regarding the mandatory use of body worn cameras during all investigative stops. (*Id.* at ¶13.) The evidence "could not be produced at the hearing because it was not provided." (*Ibid.*) A document, apparently from the Pleasant Hill Police Department, is attached to the petition. It states, in relevant part, "Our officers utilize body cameras during all calls for service including all enforcement activities, investigative stops and field interviews."

The verified petition for writ of mandate was filed on February 11, 2026. The petition attaches the administrative hearing officer's findings from the hearing on January 21, 2026. A hearing on the writ was initially set on May 29, 2026, but petitioner did not lodge the administrative record

until May 21, 2026, allowing too little time for the Court to review prior to the hearing. Accordingly, the hearing was reset to this date (August 7, 2026). The Court has now reviewed the petition, as well as the 76-page administrative record (“AR”) received. Notably, petitioner submitted no video evidence, as alluded to in the petition.

The Department represents the administrative record was not served, but has nevertheless opposed on the merits. Because the Department was responsible for preparing the 76-page PDF in the Court’s possession, the Court proceeds with its ruling and, barring any objection at the hearing, assumes all parties have the same record (no video footage was submitted) in their possession, and refers to the pages as they appear in numerical order, with page 1 being the “ADMINISTRATIVE RECORD AND TRANSCRIPT REQUEST RESPONSE LETTER,” page 2 being the Declaration certifying the record, and page 3 being the first page of the Hearing Officer’s FINDINGS OF FACT.

The petitioner seeks to have the DMV’s January 21, 2026 order set aside, and to reinstate petitioner’s driver’s license.

II. Law on Refusals and Administrative Per Se (APS) Suspensions

“A person who drives a motor vehicle is deemed to have given his or her consent to chemical testing of his or her blood or breath for the purpose of determining the alcoholic content of his or her blood, if lawfully arrested for” a driving-under-the influence offense (Vehicle Code § 23612, subd. (a)(1)(A)), and that such testing “shall be ... administered at the direction of a peace officer having reasonable cause to believe” the person was driving while under the influence of alcohol or a drug. (*Id.* at (a)(1)(C).) In subsequent subsections, the statute sets forth in detail the circumstances under which, pursuant to this implied consent, the arresting officer may require a chemical test, the various test choices available to the arrestee, and the procedure to be followed by the officer with respect to the arrestee’s license in the event the arrestee refuses to take or complete a required test. (*Troppman v. Valverde* (2007) 40 Cal.4th 1121, 1130.)

Vehicle Code section 13353 works “in tandem with section 23612.” (*Troppman, supra*, at 1130.) Section 13353 specifies actions to be taken by the DMV in the event a person refuses an officer’s request to submit to a chemical test (often referred to as a “refusal”). (*Troppman, supra*, at 1130.) Subdivision (a) authorizes the DMV to suspend or revoke the driver’s license of “a person [who] refuses [a law enforcement] officer’s request to submit to, or fails to complete, a chemical test or tests pursuant to Section 23612, upon receipt of the officer’s sworn statement that the officer had reasonable cause to believe the person had been driving a motor vehicle” while under the influence of alcohol or a drug. (*Troppman, supra*, at 1130.) Section 13353 also confirms the process by which the arresting officer is personally to serve upon a recalcitrant arrestee a notice of suspension or revocation “pursuant to Section 23612.” (Vehicle Code, § 13353, subd. (c).)

Section 13353, together with related statutes governing the scope of the administrative hearing, specifies four factual findings to be made by the DMV when a suspension or revocation action is subjected to administrative review or hearing. In order to confirm such action, the DMV must find that:

- (1) the law enforcement officer had “reasonable cause to believe the person had been driving a motor vehicle in violation of [one or more specified Vehicle Code sections]”;
- (2) the person “was placed under arrest”;
- (3) the “person refused to submit to, or did not complete, the test or tests after being

requested by a peace officer”; and

(4) the “person had been told that his or her driving privilege would be suspended or revoked if he or she refused to submit to, or did not complete, the tests or tests.”

(*Troppman, supra*, 40 Cal.4th at 1130-1131 [these four factors are the only issues to be resolved at the administrative hearing concerning license suspension or revocation].)

III. Administrative Hearing, Findings of Fact, and Decision

Petitioner requested an administrative hearing to challenge the administrative suspension by the DMV and that hearing was re-scheduled from the initially-set date of November 26, 2025. (AR 54, 70.) The hearing was held on January 21, 2026. (AR 3, 65.) At the hearing, petitioner appeared with her counsel. DMV Hearing Officer Sims recounted the four findings required in order to uphold the administrative suspension: “1. Did the peace officer have reasonable cause to believe the driver was driving a motor vehicle in violation of 23152 or 23153 VC; 2. Was the driver lawfully arrested.; 3. Was the driver told his or her driving privilege would be suspended or revoked for one, two or three years if he or she refused to submit to or fail to complete a chemical test.; 4. Did the driver refuse to submit to or fail to complete a chemical test after being requested to do so by a peace officer.” (AR at 29:6-16.)

Hearing Officer Sims introduced four exhibits which included (1) the sworn officer statement, (2) the police report, (3) five slides from the “MVARs,” referring to Audio/Video Evidence, and (4) petitioner’s driving record. (AR 30, 75 [clarifying MVARs refers to Audio/Video Evidence].) Counsel objected, but the objections were overruled. Petitioner testified at the hearing that she did not see a police officer at any point until just before she was pulled over. (AR 34, 10-18.) Hearing Officer Sims asked one question and petitioner answered and was then excused. (AR 33-36.) Counsel then argued that the police officer lacked credibility based on his mistake as to the date of the stop. (AR 37-38.) Counsel moved to “set aside,” and the motion was denied. (AR 38:6-10.)

Hearing Officer Sims took the matter under submission and later issued a statement of findings and decision upholding the license suspension. (AR 3-5, 38.) The “Lawful Contact” portion of the decision states:

Respondent was lawfully detained by Officer C. Gardner badge #487 with Pleasant Hill PD at 22:29 PM. A reasonable articulable suspicion to detain Respondent was based on Officer C. Gardner observations of a black 2022 Ford Ranger driving through the parking lot appearing to head toward the exit. Officer C. Gardner noticed the vehicle was not equipped with a front license plate and the vehicle registration was expired as of 06/30/2025 however, the vehicle was displaying 2026 tags.

Respondent contends: Counsel for the Respondent contends the Officer did not have Probable Cause to believe Respondent was driving a motor vehicle while under the influence.

Determination: An officer may stop a driver for circumstances short of probable cause to arrest. The criterion for determining the validity of a stop is whether the circumstances would have indicated to a reasonable person, in a similar position, that an investigation was necessary to the proper discharge of the officer's duties. In this case, the Officer C. Gardner observed the respondent missing a license plate and while doing a DMV check saw its registration was expired even though the vehicle was displaying a red 2026 registration tab. It is very clear that any reasonable

person, in a similar position, would have determined that an investigation was necessary.

(AR 3.)

While Hearing Officer Sims considered counsel's arguments, Sims ultimately found an apparent error on the police report (the officer had recorded the date of patrol as 10/06/2025) was "insufficient to rebut the Department's evidence and invalidate the official duty presumption. The peace officer has an obligation to record events as they occur and to accurately reflect all events surrounding the contact and arrest." Sims stated that "[t]he clerical error noted on Exhibit #2 Narrative is not deemed fatal to this administrative process." (AR 4.) Further, "[t]he Department can reasonably infer the evidence contains all the relevant, articulate facts that serve as a prerequisite for the stop, contact, and lawful arrest. Counsel presented no probative evidence or testimony to substantiate that the events reported are not what they purport to be. (AR 4.)

Hearing Officer Sims also found petitioner was lawfully arrested because, once pulled over, the Officer Garder "observed Slurred Speech, Red and/or Watery Eyes, Odor of Alcohol, and Unsteady Gait." (AR 4.) Finally, Hearing Officer Sims further found that petitioner had been sufficiently admonished, and that she still refused to take a required chemical test to verify her blood alcohol content. (AR 4-5; see also police report at AR 18-20.) As a result, Hearing Officer Sims reimposed the suspension of petitioner's license. (AR 5.)

IV. Standard of Review:

When a person petitions for a writ of mandate following an order suspending his or her driver's license, the court is required to determine, based on the exercise of its independent judgment, whether the weight of the evidence supports the administrative decision. (*Arthur v. Department of Motor Vehicles* (2010) 184 Cal.App.4th 1199, 1204, citing *Lake v. Reed* (1997) 16 Cal.4th 448, 456, Code Civ. Proc., § 1094.5.) In making that determination, the court acts as a trier of fact; it has the power and responsibility to weigh the evidence and make its own determination about the credibility of witnesses. (*Arthur, supra*, 184 Cal.App.4th at 1205, citing *Barber v. Long Beach Civil Service Com.* (1996) 45 Cal.App.4th 652, 658.) The administrative findings, however, are entitled to "a strong presumption of correctness," and "the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (*Arthur, supra*, 184 Cal.App.4th at 1205, citing *Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 817.) Review is limited to the administrative record. (Veh. Code, § 13559(a).)

V. Analysis:

Petitioner only challenges one aspect of the four required findings of the DMV hearing officer: that the officer had the initial authority for stopping her vehicle. This pretext argument was also asserted by petitioner's counsel at the administrative hearing, wherein counsel argued that the officer made a mistake as to the date of the stop and therefore lacked credibility. (AR 37-38.)

"[A] lawful traffic stop occurs when the facts and circumstances known to the police officer support at least a reasonable suspicion that the driver has violated the Vehicle Code or another law." (*People v. Nice* (2016) 247 Cal.App.4th 928, 937-938.)

Just as petitioner contends the videos would support her narrative, the Department argues the MVARs video footage supports the officer's account. The Court has not received any videos. Accordingly, it cannot consider them. However, the administrative hearing officer's findings are still viewed with a presumption of correctness, and petitioner still bears the burden of showing the

findings are contrary to the weight of the evidence.

"Evidence Code section 664, which presumes that an official duty has been regularly performed, has been widely applied to DMV administrative hearings." (*Petricka v. Department of Motor Vehicles* (2001) 89 Cal.App.4th 1341, 1348.) "Evidence Code section 664, which affects the burden of proof, can satisfy the DMV's burden of proving that appropriate procedures have been properly performed. Once a prima facie case is made, the burden then shifts to the driver to show improper performance, either by cross-examination of the arresting officer or by the introduction of affirmative evidence." (*Ibid.*)

Here, Officer Gardner stated two bases for the stop. Petitioner's truck was missing a front license plate, which he noted was "a violation of California Vehicle Code section 5200(a)," and the registration was showing as expired, according to a DMV check (despite a current sticker on the vehicle), which he noted was a "violation of California Vehicle Code section 4000(a)(1)." (AR 18.) The documentary evidence here satisfied the Department's initial burden of proof. The court finds that the record is sufficient as to the officer's reason for the stop even without the presumption afforded under Section 664.

On direct examination, petitioner testified she did not observe the officer until after he was driving behind her. She did not establish that her failure to observe the officer would mean he was not there, or could not have otherwise observed the lack of front license plate. Petitioner also did not provide any evidence to undermine the officer's representation he "performed a DMV records check of the vehicle" or that he "saw its registration was expired as of 06/30/2025." (AR 18.) The Hearing Officer was not required to give petitioner's testimony more weight than the report by the officer.

The Court agrees with the hearing officer's finding that the incorrect date, combined with petitioner's testimony, "insufficient to rebut the Department's evidence and invalidate the official duty presumption." The Court further agrees that no probative evidence or testimony substantiated a version of events other than the version described in the police report.

On the record here, the Court independently finds that the Department's findings of fact and decision were supported by the weight of the evidence. The writ must therefore be **denied**.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
COMPEL CROSS-DEFENDANT MICHAEL JENKINS' DEPOSITION
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called “the twilight zone of abatement,” in which the court maintains “merely a vestigial jurisdiction over matters submitted to arbitration.” (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally “consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not....” (*Id.*) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
ISSUE CONFERENCE AND TRIAL PLANNING. ALL PARTIES WITH SETTLEMENT AUTHORITY SHALL
APPEAR IN PERSON IN D32. DEF ADJUSTER MAY ATTEND REMOTELY
FILED BY:

TENTATIVE RULING:

Parties to appear.

Law & Motion Add On

17. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
***MOTION/PETITION TO COMPEL ARBITRATION ADVANCED PER TR ON 6/26/26**
FILED BY: TRUONG, TERESA

TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by Defendant Emeritus Corporation dba Brookdale Danville (erroneously sued as Brookdale Danville), Defendant Brookdale Living Communities, Inc., Defendant Brookdale Senior Living Communities, Inc., Defendant Brookdale Senior Living Foundation, and Defendant Teresa Truong (collectively, “Defendants”). For the reasons set forth below, the motion is **granted**. The action shall be **stayed** pending completion of the arbitration.

The Plaintiffs’ motion for trial preference, continued to August 7, 2026 by the court’s order dated June 26, 2026, is **denied** as moot in light of this ruling.

The Court sets a **Case Management Conference** (“CMC”) to review the status of arbitration proceedings on **November 12, 2026** at 8:30 a.m. in Dept. 32. Parties must file a CMC Statement 10 days in advance of the hearing.

Judicial Notice

On reply, Defendants request judicial notice of JAMS arbitration rules. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

Background

Plaintiff Reid Greenlaw, Plaintiff Courtney Greenlaw, and Plaintiff the Estate of Mary Greenlaw (collectively, “Plaintiffs”) allege that Mary Greenlaw (“decedent” or “Greenlaw”) is Reid Greenlaw’s spouse and Courtney Greenlaw’s adoptive mother who died following Defendants’ care.

The Complaint alleges that Greenlaw was initially admitted as a resident at Brookdale Danville on or about February 5, 2023 with a history of health issues, including dementia and Alzheimer’s. (Complaint at ¶ 23.) The Complaint alleges a viral outbreak in approximately May 2024 in which several residents experienced vomiting and diarrhea. (*Id.* at ¶ 30.) On or about May 21, 2024 Defendants contacted Plaintiff Reid Greenlaw and informed him that Greenlaw’s condition had deteriorated and that Defendants believed she should be transported elsewhere for emergency medical services. (*Id.* at ¶ 36.) Thereafter, Greenlaw was transported to John Muir Medical Center where she received an admission diagnosis of Sepsis, Septic Shock With Acute Liver Failure, Acute Hypoxic Respiratory Failure, Acute Kidney Failure, Barrett’s Esophagus, Hypothermia, Dehydration, Renal Failure, Low Hemoglobin, and Altered Level of Consciousness. (*Id.*) Greenlaw passed away on or about May 25, 2024.

The Complaint alleges a cause of action for negligence, elder abuse, wrongful death, and negligent infliction of emotional distress. Reid Greenlaw filed a declaration under Code of Civil Procedure section 377.32 declaring he and Courtney Greenlaw are successors in interest.

The Defendants have moved to compel arbitration of Plaintiffs’ claims. Plaintiffs oppose the motion.

Procedures for Enforcement of Arbitration Agreement

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* (“FAA”) or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* (“CAA”), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract bar the enforcement of the arbitration agreement. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) The party moving to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.)

The party seeking arbitration meets its initial burden by attaching a copy of the arbitration agreement

at issue that purports to bear the respondent's signature. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, supra*, 8 Cal.5th at 125; Code Civ. Proc. § 1281 [written agreement to arbitrate "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract"]; 9 U.S.C. § 2 [an arbitration agreement is "valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract"].) Unconscionability is a defense to enforcement of contracts in general and grounds for finding an arbitration agreement unenforceable without contravening the FAA. (9 U.S.C. § 2; Civ. Code § 1670.5(a); *OTO, supra*, 8 Cal.5th at 125 [unconscionability].) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the existence of an enforceable arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Analysis

Existence of An Arbitration Agreement

A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable consistent with standard contract principles. (Code Civ. Proc. § 1281.)

In *Quach v. California Commerce Club, Inc.* (2024) 16 Cal. 5th 562, 569 our Supreme Court recognized that the U.S. Supreme Court's decision in *Morgan v. Sundance, Inc.*, (2022) 596 U.S. 411, clarified that the federal policy "favoring arbitration," is about "putting arbitration agreements on equal footing with other contracts, *not about favoring arbitration.*" *Quach*, 16 Cal. 5th at 569 (emphasis added). The *Quach* Court declared, "California policy, like federal policy, puts arbitration agreements on equal footing with other types of contracts. Accordingly, under California law, as under federal law, a court should apply the same principles that apply to other contracts to determine whether the party seeking to enforce an arbitration agreement has waived its right to do so". *Quach*, 16 Cal. 5th at 569.

Here, Defendants have presented a Residency Agreement that includes an agreement to arbitrate, executed by Plaintiff Reid Greenlaw on January 27, 2023. (Davis Decl. at ¶ 7, Ex. A.) Plaintiff Reid Greenlaw does not contest either the authenticity of the Residency Agreement or the fact that he signed it. (Greenlaw Decl. at ¶ 6, Ex. B.) Plaintiffs' opposition argument that "Brookdale cannot show the parties ever agreed to arbitrate" lacks merit in several respects. First, Plaintiff Reid Greenlaw does not dispute that he clicked through the signature tags of the Residency Agreement. (*Id.*) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement." (*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 518 [plaintiff's inability to read English and his limited ability to speak or understand English did not alter the conclusion that his signatures and initials on the contract manifested his agreement to its terms].) As a consequence, Plaintiffs' mutual assent argument (Opp. at § III(F)) is unavailing.

Unconscionability

Plaintiffs argue the Arbitration Agreement is both substantively and procedurally unconscionable.

Unconscionability requires proof of both procedural and substantive unconscionability, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *OTO, supra*, 8 Cal.5th at 125.) Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “ ‘ ‘Oppression” arises from an inequality of bargaining power which results in no real negotiation and “an absence of meaningful choice.” [Citation.]’ [Citation omitted.]” (*Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 114.) Surprise for purposes of procedural unconscionability arises where the allegedly unconscionable term “is hidden within a prolix printed form. [Citation, internal quotation marks omitted.]” (*OTO, supra*, 8 Cal.5th at 126 [quoting *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247].)

When the agreement is a contract of adhesion, there is some showing of oppression and a degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 126.) Contracts of adhesion, however, “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively unconscionable or otherwise invalid.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493.)

“Substantive unconscionability looks beyond the circumstances of contract formation and considers ‘the fairness of an agreement’s actual terms’ [citation omitted], focusing on whether the contract will create unfair or one-sided results [citation omitted.]. Substantively unconscionable contractual clauses ‘reallocate risks in an objectively unreasonable or unexpected manner.’ [Citations omitted.]” (*Ramirez, supra*, 16 Cal.5th at 493.)

Procedural Unconscionability

Plaintiffs contend that the Arbitration Agreement is procedurally unconscionable because it “was presented on a take-it-or-leave-it basis[.]” (Opp. at § III(A)(1).) However, the Arbitration Agreement here states that the resident or resident’s legal representative “understand[s] that you have the choice to opt out of [the provisions requiring arbitration] with respect to any future, but not existing, claims against [Brookdale Danville],” and provides a space to sign to opt out. (Davis Decl. at ¶ 7, Ex. A at § V(C).) The arbitration agreement also states that consent to arbitrate may be withdrawn within 30 days upon written notice to Brookdale Danville. Residency was not predicated on agreement to arbitration and Plaintiffs had a meaningful choice to opt out.

As a consequence, Plaintiffs’ “take it or leave it” argument fails. Thus, Plaintiffs have failed to establish procedural unconscionability. Since both procedural and substantive unconscionability must be present to preclude enforcement, Plaintiffs fail to establish that the Agreement is unenforceable for unconscionability. However, in the interest of completeness the Court will continue the substantive unconscionability analysis.

Substantive Unconscionability

Plaintiffs make several substantive unconscionability arguments. Specifically, they argue the confidentiality, cost-splitting, and discovery limitations in the Arbitration Agreement are substantively unconscionable.

In order to find an agreement substantively unconscionable, it must be so “one-sided as to shock the

conscience.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.)

Confidentiality

Plaintiffs argue that the broad confidentiality provision of the agreement (barring any resident claimant from disclosing the proceedings, the parties, the facility, the issues, the documents exchanged, the witnesses and their testimony, and the arbitrator’s award and reasoning) is substantively unconscionable. (Opp. at 4:12-23 [citing *Haydon v. Elegance of Dublin* (2023) 97 Cal.App.5th 1280, 1290 and *Ting v. AT&T* (9th Cir. 2003) 319 F.3d 1126, 1151–1152].)

In *Haydon, supra*, 97 Cal.App.5th at 1290, the appellate court found the confidentiality provision barring the parties from “disclos[ing] the existence, content, or results of arbitration” substantively unconscionable. The *Haydon* court wrote, “as in the employment context, confidential arbitration of claims like Haydon’s tilt[s] the scales of justice against potential victims of abuse by denying [them] access to any information about other claims against the facility.” (*Id.* at 1290 [cleaned up].) The *Haydon* court found the confidentiality requirement to be unconscionable to a “high degree” because it is at odds with the Legislature’s declaration that “confidential settlement agreements are disfavored in actions involving violations of the Elder Abuse Act.” (*Ibid.* [cleaned up].)

In *Ting*, a class action lawsuit on behalf of over 7 million residential telephone customers, at issue was a provision in long-distance telecommunication carrier contracts that required “[a]ny arbitration [to] remain confidential.” (319 F.3d at 1151.) The court concluded the provision was unconscionable because “plaintiffs are unable to mitigate the advantages inherent in being a repeat player. This is particularly harmful here, because the contract at issue affects seven million Californians. Thus, AT&T has placed itself in a far superior legal posture by ensuring that none of its potential opponents have access to precedent while, at the same time, AT&T accumulates a wealth of knowledge on how to negotiate the terms of its own unilaterally crafted contract. Further, the unavailability of arbitral decisions may prevent potential plaintiffs from obtaining the information needed to build a case of intentional misconduct or unlawful discrimination against AT&T.” (*Id.* at 1152.) It is unclear what application *Ting* has here because Plaintiffs make no showing that Defendants are a “repeat player” or, assuming they are, that arbitration confidentiality will put them in a superior legal posture.

That said, the confidentiality provision here does seem quite broad, as it includes “all arbitration filings, deposition transcripts, documents produced or obtained in discovery, or other material provided by and exchanged between the parties and the arbitrator’s findings of fact and conclusions of law.” (Davis Decl. at ¶ 7, Ex. A at § V(A)(12).) As in *Haydon*, this confidentiality clause appears to be so broad it would prevent the Plaintiffs from informally investigating their claims. (*Haydon, supra*, 97 Cal.App.5th at 1290.) There is no provision, for example, allowing for communication with potential witnesses to the extent necessary. However, Defendants make some persuasive points distinguishing *Haydon* – for example, in *Haydon* there was significant procedural unconscionability along with the substantive issues with the confidentiality clause. Here, Plaintiffs have not demonstrated any procedural unconscionability. That said, the Court concludes that the confidentiality provision is unconscionable.

Cost-Splitting

Plaintiffs also argue that the equal cost sharing provision unfairly benefits Defendants.

While cost-splitting in arbitration proceedings in the employment context have been found to be substantively unconscionable (*Armendariz, supra*, 24 Cal.4th at 110–111 [“when an employer imposes

mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any type of expense that the employee would not be required to bear if he or she were free to bring the action in court” (italics omitted))), Plaintiffs have not provided any authority (and the Court is not aware of any) that reaches the same conclusion outside of the employment law context. Furthermore, Plaintiffs have not introduced any evidence regarding the fees themselves or Plaintiffs’ ability to pay. As a consequence this argument is entirely speculative. On this record, the Court cannot conclude that the cost-splitting provision is unconscionable.

Discovery Limitations

Plaintiffs argue that the discovery limitations in the incorporated JAMS Comprehensive Rules (a single deposition and no interrogatories or requests for admissions) is substantively unconscionable.

Significantly, adequate discovery in arbitration does not equal unfettered discovery, and parties may agree to something less than what is available under the Code of Civil Procedure. (See *Sanchez v. Carmax Auto Superstores Cal, LLC* (2014) 224 Cal.App.4th 398, 404 [citing *Armendariz v. Foundation Health Psycare Servs., Inc.* (2000) 24 Cal.4th 83, 105-060].) “[Arbitration is meant to be a streamlined procedure. Limitations on discovery... is one of the ways streamlining is achieved.” (*Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983.) “In striking the appropriate balance between the desired simplicity of limited discovery and an employee’s statutory rights, courts assess the amount of default discovery permitted under the arbitration agreement, the standard for obtaining additional discovery, and whether the plaintiffs have demonstrated that discovery limitations will prevent them from adequately arbitrating their statutory claims.” (*De Leon v. Pinnacle Property Management Services, LLC* (2021) 72 Cal.App.5th 476, 487.) This is not an employment case and Plaintiffs have not made any showing that discovery limitations would prevent them from adequately arbitrating their claims. Furthermore, as noted by Defendants, JAMS rules vest the arbitrator with discretion to allow additional discovery. (RJN Ex. A.)

The Court cannot conclude that the discovery limitations are unconscionable.

Injunctive Relief

Plaintiffs also argue that the provision of the arbitration agreement that appears to preclude them from seeking injunctive relief renders the agreement unenforceable under *McGill v. Citibank* (2017) 2 Cal.5th 945, 961 (*McGill*). Specifically, Plaintiffs argue that section V(A)(2) of the agreement forecloses public injunctive relief.

In *McGill*, the California Supreme Court considered “whether the arbitration provision is valid and enforceable insofar as it purports to waive [a credit card holder’s] right to seek public injunctive relief in any forum.” (*Id.* at 956.) The relevant provisions of the agreement at issue there were as follows: “(1) ‘[a]n award in arbitration shall determine the rights and obligations between the named parties only, and only in respect of the Claims in arbitration, and shall not have any bearing on the rights and obligations of any other person, or on the resolution of any other dispute’; (2) ‘[t]he arbitrator will not award relief for or against anyone who is not a party’; (3) ‘the arbitrator may award relief only on an individual (non-class, nonrepresentative) basis’; and (4) ‘neither you, we, nor any other person may pursue the Claims in arbitration as a class action, private attorney general action or other representative action.’” (*Ibid.*) After discussing the impact of changes to the UCL, the court held, “the waiver in a predispute arbitration agreement of the right to seek public injunctive relief under these statutes would seriously compromise the public purposes the statutes were intended to serve. Thus, insofar as the arbitration provision here purports to waive [the credit card holder’s] right to request in

any forum such public injunctive relief, it is invalid and unenforceable under California law.” (*Id.* at 961.)

Here, the provision of the class and representative claims waiver states that “[y]ou and the Company agree that each of us may bring claims against the other only on an individual basis and not as a named or putative class member in any purported class, or representation action or proceeding” and “[u]nless both you and the Community agree otherwise in writing, the arbitrator may not consolidate or join more than one person’s or party’s claims, and may not otherwise preside over any form of a consolidated representative or class action proceeding.” (Agreement § V(A)(2).) As a consequence, the provision appears to preclude Plaintiffs from seeking public injunctive relief and is substantively unconscionable. (*McGill, supra*, 2 Cal.5th at 959.)

However, the Court cannot conclude that the Arbitration Agreement is permeated by substantive unconscionability. Instead, the Court finds that Plaintiffs have shown a low level of substantive unconscionability based on the confidentiality and injunctive relief provisions. However, in the absence of any procedural unconscionability, this low level of substantive unconscionability is insufficient to render the entire agreement unenforceable.

Section 1281.2

Finally, Plaintiffs argue that the Court should decline to compel arbitration under Code of Civil Procedure section 1281.2 because Plaintiffs’ wrongful death claims are not arbitrable. In opposition, Defendants argue that the Court lacks discretion under 1281.2(c) to deny the motion, as the FAA requires arbitration of all causes of action against Defendants and the stay of any non-arbitrable claims.

There are three conditions necessary for section 1281.2, subdivision (c) to apply: (1) there must be ongoing litigation between a signatory and a third party; (2) this litigation arises out of the same facts, incidents, or transactions as the dispute between signatories; and (3) conflicting rulings may result if these disputes are heard separately in arbitration and in court. (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967-968.)

“A trial court has no discretion to deny or stay arbitration unless all three of section 1281.2[, subdivision] (c)’s conditions are satisfied.” (*Acquire II, supra*, 213 Cal.App.4th at 968.) “Whether there are conflicting issues arising out of related transactions is a factual determination subject to review under the substantial evidence standard.” (*Id.* at 972.) “[T]he allegations of the parties’ pleadings may constitute substantial evidence sufficient to support a trial court’s finding that section 1281.2[, subdivision] (c) applies.” (*Ibid.*)

Once these conditions are met, the court may exercise its discretion to choose among four options: (1) “refuse to enforce the arbitration agreement,” (2) “order intervention or joinder as to all or only certain issues,” (3) order arbitration as to the parties in agreement and stay the pending court action, or (4) stay the arbitration until completion of the pending court action. (§ 1281.2.)

In *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 841, the Supreme Court carved out an exception to the general rule that only parties to arbitration agreements are bound, holding with respect to medical malpractice claims that “all wrongful death claimants are bound by arbitration agreements entered into pursuant to section 1295, at least when . . . the language of the agreement manifests an intent to bind these claimants.” The court in *Ruiz* explained, “‘Section 1295 was enacted as part of the Medical Injury Compensation Reform Act of 1975 (MICRA). . . . The purpose of section 1295 is to encourage and facilitate arbitration of medical malpractice disputes. [Citations.] Accordingly,

the provisions of section 1295 are to be construed liberally.’ In other words, the encouragement of arbitration “‘as a speedy and relatively inexpensive means of dispute resolution’” [citation] furthers MICRA’s goal of reducing costs in the resolution of malpractice claims and therefore malpractice insurance premiums.” (*Id.* at 843-844; accord, *Holland v. Silverscreen Healthcare, Inc.* (2024) 101 Cal.App.5th 1125, 1132 [“*Ruiz* concluded ‘that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions.’”].)

The court in *Ruiz* found that the arbitration agreement executed by the patient contained language that complied with CCP 1295 and an intent to bind all parties whose claims might arise out of or relate to the medical treatment. (*Ruiz, supra*, 50 Cal.4th at 841-842.) As such, in *Ruiz*, the court found that there was an agreement to arbitrate claims of the patient’s spouse and heirs, including for wrongful death and loss of consortium. (*Id.* at 849-850.) The *Ruiz* court held: “we are persuaded that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions.” (*Id.* at 849.)

Subsequently, in *Holland*, the court relied on the holding in *Ruiz* and determined that the plaintiffs’ wrongful death claims were subject to arbitration, because the deceased patient had signed an arbitration agreement that complied with CCP 1295 and that manifested an intent to bind heirs, including for wrongful death claims. (*Holland, supra*, 101 Cal.App.5th at 1129-1130.) The court further found that “the parents’ barebones claim against [the facility] Asistencia sounds in professional negligence,” because the complaint alleged that “Asistencia owed [the deceased] Skyler duties, that Asistencia failed to meet its duties, and that ‘[a]s a proximate result of negligence and ‘neglect’ ... [Skyler] died.’” (*Id.* at 1133.) The court further found that “[t]he allegations of understaffing and the failure to prevent Skyler from falling or developing infections speak to ‘negligent act[s] or omission[s] to act by a health care provider in the rendering of professional services’ which proximately caused Skyler’s death. (§ 1295, subd. (g)(2).)” (*Ibid.*) The court in *Holland* held: “We will not permit plaintiffs to circumvent *Ruiz* through intentionally opaque pleading.” (*Id.* at 1135.)

Although the petition for review of the opinion in *Holland*, was granted, the ruling “may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion ... to choose between sides of any such conflict.” (*Holland v. Silverscreen Healthcare, Inc.* (Cal. 2024) 553 P.3d 865.)

In this case, Plaintiffs’ wrongful death claim clearly sounds in professional negligence, based on the allegations that Defendants failed to carry out their duties to provide adequate nursing care to Greenlaw. Further, there is a clear intent in the arbitration agreement to bind the decedent’s heirs and encompass the claims in this case. (Agreement at § V(A)(1) [“Any and all claims or controversies arising out of, or in any way relating to services and care provided by the Community pursuant to this Agreement ... shall be submitted to binding individual arbitration.”].) As such, the intent of CCP 1295, under the precedent in *Ruiz* and as supported by the ruling in *Holland*, mandates that Plaintiffs arbitrate their claims against Defendants in this action. Furthermore, because CCP 1295 applies, Plaintiffs cannot rely on 1281.2(c) to argue an exception to enforcement of the arbitration agreement,

pursuant to the plaint language of said provision. (Code Civ. Proc. § 1281.2, subpart (c).)

Conclusion: The Arbitration Agreement is Valid

The court finds Defendants have sufficiently demonstrated: (1) the parties entered into a written agreement to arbitrate; (2) the claims at issue are covered by that agreement; and (3) the responding party refused a prior demand for arbitration under the agreement of the claims at issue. (Code Civ. Proc, § 1281.2; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Thus, the burden shifts to Plaintiffs to prove by a preponderance of evidence a ground for denial. (*Engalla*, 15 Cal.4th at 972.) Based on the state of the record, as applied to the applicable law, the Court concludes Plaintiffs have not adequately demonstrated either procedural unconscionability and substantive unconscionability. (See *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247 [stating both procedural unconscionability and substantive unconscionability must be shown.]) Therefore, the Court concludes Plaintiffs have not met the shifted burden required.

For the foregoing reasons, the Motion is **granted**.